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GROUND LEASE

FOR REAL ESTATE PARCEL EC-2C

BETWEEN

CHICAGO TITLE LAND TRUST COMPANY, AS TRUSTEE UNDER A TRUST AGREEMENT DATED DECEMBER 1, 2007, AND KNOWN AS TRUST NO. 1114334, as Lessor

AND

NORTH SHORE ICE ARENA, LLC, as Lessee

DATED AS OF: December 1, 2007 This document was

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GROUND LEASE

This Ground Lease is dated as of December 1, 2007 ("Effective Date") and is between· CHICAGO TITLE LAND TRUST COMPANY, not personally but as Trustee under a Trust· Agreement dated December 1, 2007, and known as Trust No. 1114334 ("Lessor"), and NORTH. SHORE ICE ARENA, LLC, an lllinois limited liability company ("Lessee"). .

RECITALS

A. Lessor is the owner of certain Premises (as defined in Section 1.1); and

B. Lessor desires to lease the Premises to Lessee and Lessee desires to lease. the Premises from Lessor on the terms and conditions herein set forth.

ACCORDINGLY, Lessor and Lessee hereby agree as follows:

ARTICLE!

Premises and Term

1.1 Premises; Term; Renewal Option. In consideration of the Rent (hereinafter • defined) to be paid and the terms, covenants, conditions, agreements and obligations to be · performed and observed by Lessee as herein provided, LessQr does hereby demise and lease to Lessee, and Lessee does hereby take and hire, the Premises, which consist of that certain tract of' vacant land, comprised of approximately five (5) acres, located in the Village of Northbrook, Cook County, Illinois (commonly referred to by the Techny Land Committee as Parcel EC-iC ·. and legally described on Exhibit A attached hereto and made a part hereof ("Land"), subject to . the terms of this Lease and the title exceptions listed on Exhibit B attached hereto and made a part hereof and to any interests or acts of Lessee or anyone claiming or acting by, through or · under Lessee, together with Lessor's right, title and interest, if any, in and to (i) all public or · private infrastructure improvements which may now or hereafter be located thereon, and (ii) all of Lessor's interest in any private easements, rights of way or other improvements appurtenant· thereto, (iii) all privileges, rights, easements, hereditaments, and appurtenances thereunto belonging, and (iv) all right, title and interest of Lessor in and to any streets, passages and other . rights of way included therein or adjacent thereto (collectively, "Appurtenant Rights"), to have and to hold unto Lessee for and during an initial term of sixty (60) years, seven (7) months and· four (4) days ("Initial Term"), commencing on January 28, 2008 ("Commencement Date"). and expiring on the Expiration Date, with two (2) options to renew said Initial Term as hereinafter provided, unless sooner terminated on such date as may be provided in Section 17 .3.1 or elsewhere in this Lease ("Termination Date"). Provided no Default that has not been cured then exists on the part of Lessee under this Lease, Lessee shall have the option to renew the Initial Term of this Lease for two (2) additional terms of ten {1 0) years each (each a "Renewal • Term") and will be exercisable by notice from Lessee to Lessor of Lessee's intent to renew this

Lease given no later than August 31; 2066 for the first Renewal Term commencing September 1; · 2068 and August 31,2076 for the second Renewal Term commencing September 1, 2078, which notice shall, automatically and without any further act on the part of either party, invoke the • provisions of Section 3.1.5 for purposes of determining the Base Rent payable during such

Renewal Term. Except for the Base Rent payable during the Renewal Terms, which shall be determined as provided in Section 3.1.5 below, all of the other terms and conditions .that are provided for in this Lease shall remain in full force and effect during the Renewal Terms. If· Lessee fails to give such notice on or before August 31, 2066, for the first Renewal Term, or by August 31, 2076 for the second Renewal Term, or if a Default that has not been cured on the part • of Lessee under this Lease as of either such date, then this Lease shall expire by its own terms··

automatically and without any further action on the part of either party as of the date that would be the natural Expiration Date of the then current Term, unless otherwise agreed in writing by· Lessor and Lessee.

1.2 Public Areas; Reservation of Rights.

1.2.1 Excluded Areas; Right to Use. Lessor has not and does not demise to Lessee any space under, on or above the public roads and other public areas adjoining the.' Premises (collectively, "Environs"), but Lessor hereby grants to Lessee, during the Term of this Lease and subject to all the provisions hereof, such rights to use such of the Environs as Lessor now or hereafter may own or enjoy; and Lessee shall indemnify Lessor ·and save Lessor harmless from and against all claims by any public authority or any other party for compensation or damages by reason of the use or occupation of, or intrusion on, above or under the Environs by Lessee or anyone using, entering upon or occupying the Premises by, through or under Lessee. ·

1.2.2 Lessor's Reserved Rights. Lessor has reserved and hereby continues . to • reserves unto itself, its successors and assigns, (i) all mineral rights below the surface of th¢ Land, (ii) all air rights (including, without limitation, the right to proceeds from .condemnation or J'• eminent domain proceedings related to such rights) above a horizontal plane beginning at a: · .. · height twenty;five feet above the maximum height of the tallest of the building or buildings. or other structures permitted to be constructed by Lessee pursuant to this Lease, and (iii) the right to· cjedicate to the Village (and Lessee agrees to join therein if necessary' and to cause its Leasehold Mortgagee to consent thereto, if required by Lessor, the Village or any title insurance company) any easements not granted prior to the date of this Lease for the bike path intended to be installed along the eastern perimeter of the Premises adjacent to the Founders Drive right-of-way. as generally depicted on Exhibit 0 (subject to any necessary modifications as required by the Village) and any pubic utilities required to serve any other portions of the Techny Land in the same vicinity as the bike path easement or in other locations compatible with Lessee's Approved Plans to be constructed at the expense of a party other than Lessee. Further, Lessor reserves th~ right to make any dedications in the future (as expressly provided in Section 1.4 below) to the appropriate Governmental Authority and required in connection with the Initial Project, any Added Component or any Redevelopment Plan. The foregoing reservation of rights shall not be . construed to permit Lessor: (1) to build any structures or improvements of any type over an)r portion of the Land (whether or not occupied by buildings or other improvements) during the Term of this Lease, or (2) during the Term hereof, to extract minerals from under the surface of the Land without Lessee's prior written consent, which consent shall not be withheld unless Lessee reasonably determines that the extraction of minerals by Lessor (including the processes related thereto and the installation or use of equipment used in connection therewith) will materially interfere with or adversely affect Lessee's use of the Premises or the value of the Land, the Building or the other Improvements taking ·into account, among other things, the

marketability of Lesseets Buildingst insurance requirementst aesthetics, safety and such other factors as Lessee may reasonably consider.

1.3 Delivery of Possession; Condition of Premises. Lessor shall deliver possession of the Premises to Lessee on the Commencement Datet free of all interests of any third parties or other

title encumbrances other than (i) those interests disclosed on Exhibit B attached hereto; (ii) · any interests or acts of Lessee or anyone claiming or acting by, through or under Lessee, and (iii). any matters disclosed in the title insurance policy or title insurance commitment obtained by Lessee in connection with the execution and delivery of this Lease, which Lessee has accepted . (collectively, the "Permitted Exceptions"). Lessee acknowledges Lessee is familiar with the· physical condition of the Premises and the Environs, and except as otherwise provided in this Lease, Lessee acknowledges neither Lessor nor Lessor's Beneficiary, nor any of Lessor's or Lessorts Beneficiary's Affiliates, agents, employees, consultants or advisors has made any representation as to the condition thereof, and Lessee has taken possession of the Premises in an • "as is" condition.

1.4 Reservation of Lessor's Right to Make Future Dedications. So long as such dedication would not adversely affect Lessee's ability to maintain the Project and its parking,· · Lessor reserves the right to make any dedications (a) to any appropriate Governmental Authority for the purposes of the widening of any existing public roads boarding on the Premises, if required by any Governmental Authority in connection with the Initial Project or any Added Component or Redevelopment Plan ("Roadway Dedications"), and (b) to any appropriate Governmental Authority or public utility company or communication or cable television· provider, easements for public utilities (such as electric, natural gas, telephone and. communications or cable television); provided, however, that no such dedication shall be made without Lessee:s consent if the effect thereof would be to (i) require the modification of any then: existing or required or planned storm water detention basins approved by Lessor or any of · Lessee's signage located within the proposed areas to be dedicatedt ,(ii) reduce the maximU~I;t number of Gross Square Feet Lessee is permitted to or has constructed on the Premises, (iii)· reduce the number of parking spaces for the Project, or (iv) prohibit Lessee's use of the Premises for the purposes permitted under Section 6.1. If required by IDOT, any other Governmental Authority or title insurance company providing a title insurance policy or policies to any of Lessor, Lessee, a Leasehold Mortgagee or a Fee Mortgagee, Lessor and Lessee shall execute (and Lessee shall cause its Leasehold Mortgagee, if any, to execute) any amendments or other documents to this Lease or to the Short Form of Lease required or reasonably requested . in connection with any such Roadway Dedications and conveyance to confirm that any portion or portions of the Land so dedicated or conveyed is no longer subject to this Lease or a part of the, Premises. Lessor explicitly reserves the right to dedicate the bike path easement to the Village. Said bike path will be in the area generally depicted on Exhibit 0 attached hereto.

ARTICLE2

Def'mitions

All capitalized terms used in this Lease shall have the definitions assigned to them 'in Exhibit C attached hereto. ·

ARTICLE3

Rent Payments

3.1 Base· Rent.

Lease Year	Annual Base Rent
1 (9/1/08-8/31/09)	$200,000.04
2 (9/1/09-8/31/1 0)	$200,000.04
3 (9/1/10-8/31/11)	. $200,000.04
4 (9/1/11-8/31/12)	$200,000.04
5 (9/1/12-8/31/13)	$200,000.04
6 (9/1113-8/31/14)	$230,000.04
7 (9/1/14-8/31/15)	
8 (9/1/15-8/31/16)	
9 (9/1/16-8/31/17)	
10 (9/1117-8/31118)	
11 (9/1/18-8/31/19)	
12 (9/1/19-8/31/20)	
13 (9/1/20-8/31/21)	
14 (9/1/21-8/31/22)	
15 (9/1/22-8/31/23)	
16 (9/1/23-8/31/24)	
17 (9/1 /24-8/31 /25)	
18 (9/1/25-8/31/26)	
19 (9/1/26-8/31/27)	
20 (9/1/27-8/31/28)	
21 (911/28-8/31129)	
22 (9/1129-8/31/30)	
23 (9/1/30-8/31131)	

$230,000.04	$349,801.32	$19,166.67
$230,000.04	$349,801.32	$22,041.67
$230,000.04		$22,041.67
$230,000.04		$22,041.67
$264,500.04	-4-	$22,041.67
$264,500.04	Monthly Payment	$22,041.67
$264,500.04	$16,666.67	$25,347.92
$264,500.04	$16,666.67	$25,347.92
$264,500.04	$16,666.67	$25,347.92

Lease Year Annual Base Rent
Monthly Payment

24 (9/1131-8/31/32)
$349,801.32 $29,150.11
25 (9/1132-8/31/33)
$349,801.32 $29,150.11
26 (9/1133-8/31/34)
$402,271.56 $33,522.63
27 (9/1/34-8/31/35) $402,271.56
$33,522.63
28 (9/1/35-8/31/36) $402,271.56
$33,522.63
29 (9/1/36-8/31/37) $402,271.56
$33,522.63

30 (9/1/37 -8/31/38)
$402,271.56 $33,522.63

31 (9/1138-8/31/39)
$462,612.24 $38,551.02
32 (9/1/39-8/31/40) $462,612.24
$38,551.02

Base Rent for the remainder of the Initial Term shall be determined in accordance with Sections.

- 3.1.2, 3.1.3 and 3.1.4 below.

Notwithstanding the foregoing, Lessee shall be entitled to an. abatement of Base Rent in an amount that equals a total of One Hundred Thousand and 08/100 Dollars ($100,000.08) against the monthly installments of Base Rent paid during the Term commencing as of the Base Rent Commencement Date as an accommodation by Lessor with respect to the anticipated additional costs Lessee will incur to remediate the known soil · conditions on Parcel EC-2C. The foregoing abatement shall be earned on a monthly basis by ' Lessee beginning as of the first day of the calendar month following Substantial Completion of the Initial Project, and Lessee shall, subject to the last sentence of this paragraph, be entitled to. deduct from the monthly payments of Base Rent set forth in the Schedule of Base Rent the · appropriate amo-qnt set forth in the following table:

Months	Total All Abatements Monthly Abatement	Total Annual Abatement ·
· 1st 12 months	$1,666.67	$20,000.04
2nd 12 months	$1,666.67	$20,000.04
3rd 12 months	$1,666.67	$20,000.04
4th 12 months	$1,666.67	$20,000.04
5th 12 months	$1,666.66	$ 19.999.92
		$100,000.08

In no event shall Lessee be entitled to such abatement if a Default exists under this Lease • at any time such abatement is due and in no event shall Lessee be entitled to any abatement in excess of the total abatement set forth above, regardless of whether the costs to remediate any soil conditions exceed the amount of the abatement or Lessee incurs other additional . unanticipated costs in connection with the construction of the Initial Project or for any other · reason.

3.1.2 New Base Rent Determined As of the Rent Adjustment Date. The Land will be appraised in the manner set forth herein for purposes of determining its Appraised Value . as of the Rent Adjustment Date, and the Base Rent payable for the Lease Year in which the Rent · Adjustment Date occurs. The Base Rent payable in that Lease Year shall be the greater of (i) the, Base Rent in the immediately preceding Lease Year, or (ii) the Appraised Value of the Land as of such Rent Adjustment Date multiplied by nine percent {9%), except that the Base Rent • payable commencing on the Rent Adjustment Date shall not (a) increase more than twenty-five

percent (25%) over the Base Rent in the immediately preceding Lease Year or (b) be less thim. the Base Rent payable in the immediately preceding Lease Year. Lessee shall commence payment of equal monthly installments of Base Rent as redetermined pursuant to this Section 3.1.2 effective on the Rent Adjustment Date (which amount shall be subject to periodic increase as provided in Section 3.1.3 below for every subsequent five Lease Years thereafter and· adjustment as provided in Section 3.1.4 below, if applicable). For the purpose of determining the. Appraised Value of the

Land as of the Rent Adjustment Date, not less than twelve (12) months: prior to the Rent Adjustment Date, representatives of the parties shaH meet and commence negotiations in good faith as to the Appraised Value of the Land as of the next Rent Adjustment. Date. However, if the Appraised Value of the Land has not been agreed to by the parties no later· than February 28 of the Lease Year immediately prior to the Rent Adjustment Date, then the provisions of Article 19 shall apply and either party may invoke the provisions of such Article 19 · as provided therein to determine the Appraisal Value of the Land. If the parties have not agreed . upon the Appraised Value of the Land or it has not been determined pursuant to Article 19 below on or before the Rent Adjustment Date, then Lessee shall continue to pay monthly Base Rent in • an amount equal to the monthly amount of Base Rent payable during the Lease Year ending' immediately prior to the Rent Adjusted Date until the Appraised Value of the Land is so agreed . to or determined. Within twenty (20) Days after conclusion of the determination of the· Appraised Value of the Land, Lessee shall pay to Lessor the excess of the Base Rent due Lessor for the Lease Year commencing with the Rent Adjustment Date, and any subsequent Lease Years (as redetermined pursuant to this Section 3.1.2) over the amount of Base Rent actually paid by Lessee for such Lease Year or Lease Years, prorated on a monthly basis for the portion of the Term then elapsed after the Rent Adjustment Date. ·

. 3.1.3 Periodic Base Rent Increases Following Rent Adjustment Date. After the Rent Adjustment Date, commencing on the first day of the sixth Lease Year following the Rerit Adjustment Date and on the first day of every fifth Lease Year thereatter during the remainder of the Initial Term, Base Rent shall be increased to an amount equal to one hundred fifteen percent (115%) of the Base Rent paid during the immediately preceding Lease Year, but shall be subject to further increases as provided in Section 3.1.4 below, if applicable. ·

3.1.4 Adjusted Base Rent with Added Components. If at any time during th(r Term of this Lease {including any Renewal Term) the Gross Square Feet of the Initial Project . increases by reason of the addition of any Added Component, then the Base Rent otherwis,e payable under this Section 3.1 shall be subject to increase commencing as of the date {the "Base Rent Adjustment Date") that is the first day of the Lease Year following any Lease Year in which any such Added Component is Substantially Completed if as a result of that Added Component, together with any previously Substantially Completed Added Components, there is an increase in the size of the Project by more than 2,000 Gross Square Feet. The amount to which the Base Rent that would otherwise be payable during such Lease Year {adjusted as. provided in this Section 3.1.4, which shall be treated as the Base Rent for the next Lease Year; notwithstanding the amounts set forth in the Schedule of Base Rent in Section 3 .1.1 above, and thereafter shall be subject to increase as provided elsewhere in this Article 3) shall be increased (such new increased amount being hereinafter called the "Adjusted Base Rent") to an amount equal to (i} the Base Rent that would otherwise be payable in accordance with the Schedule of Base Rent set out in Section 3.1.1 for Added Components {during the Initial Term} or Section 3 .1.5 (during the Renewal Term, in either case, as adjusted pursuant to Section 3 .1.3 and

any prior increases pursuant to this Section 3.1.4) during the Lease Year following the Substantial Completion of an Added Component and each Lease Year thereafter until the next Rent Adjustment Date or the next date that a new Adjusted Base Rent is required to be • determined, multiplied by (ii) a fraction, the numerator of which is equal to the then Gross Square Feet contained within the Project and the denominator of which is equal to the Gross· Square Feet contained within the Project

The provisions of this Section 3.1.4 shall apply regardless of whether Lessee obtains Lessor's. prior approval to such Added Component, but nothing contained in this Section 3.1.4 shall be• · deemed or construed to permit Lessee to construct any Added Components without Lessor's approval as proVided elsewhere in this Lease. Once the Adjusted Base Rent has been determined pursuant to this Section 3.1.4, Lessee shall continue to pay such Adjusted Base Rent as the Bas¢ Rent under this Section 3.1.4 from the Base Rent Adjustment Date until the earlier of the next Base Rent Adjustment Date or the next Rent Adjustment Date.

3.1.5 Determination of Base Rent for Renewal Terms; Periodic Adjustments During Renewal Terms. If Lessee gives notice of its intent to renew this Lease as provided in. Section 1.1 above on or before August 31, 2066, Lessee and Lessor will negotiate in good faith to determine the new Base Rent for the first Renewal Term of the Lease. If Lessee and Lessor reach agreement" on the Base Rent for such Renewal Term, then upon reaching such agreement, Lessee

and Lessor will enter into an amendment to this Lease documenting such agreement and extending the then remaining term for the first Renewal Term through August 31, 2078. ·If

Lessor and Lessee are unable to reach agreement by February 28, 2067, then either Lessee or Lessor may, by written notice sent no later than August 31, 2067 invoke the appraisal process set out in ArtiCle 19 to establish such new Base Rent, which shall be the Base Rent payable for the first through the fifth Lease Years of the first Renewal Tenn. Base Rent payable for the sixth· through the tenth Lease Years of the first Renewal Term shall be increased to an amount equal to one hundred fifteen percent (115%) ofthe Base Rent payable during the fifth Lease Year ofihe first Renewal Term commencing as of the first day of the sixth Lease Year of the Renewal Term, but shall be subject to further increases, if applicable, pursuant to Section 3.1.4. If Lessee again gives notice of its intent to renew this Lease as provided in Section 1.1 above on or before)

August 31, 2076, Base Rent payable for the first through the fifth Lease Years of the second Renewal Term shall be equal to one hundred fifteen percent (115%) of the Base Rent payable· during the tenth Lease Year of the first Renewal Term, and Base Rent payable for the sixth through the tenth Lease Years ofthe·second Renewal Term shall be equal to one hundred fifteen. percent (115%) of the Base Rent payable during the fifth Lease Year of the second Renewal Term, but shall Qe subject to further increases, if applicable, pursuant to Section 3.1.4.

3.2 Place and Time of Payment.

3.2.1 Manner of Payment. AU Rent and other sums due Lessor hereunder shall be paid in lawful money of the United States of America (i) by wire transfer to The Northern Trust Company-Chicago, ABA #071-000152, Credit: Religious Communities Trust #302-83380,. Final Credit: Divine Word Techny Community Corp., RCT Account #3014-003 preceded by a telephone call before 2:00 p.m. of the Business Day prior to such transfer to the Treasurer of Lessor's Beneficiary (or to such other person as Lessor's Beneficiary may from time to time designate) at (847) 272-2700 and to Christian Brothers Investment Services, Inc., 915 Harger Road, Suite 250, Oak Brook, Illinois 60523-1476 at Telephone No. (630) 571-2182 or (800) 321• 7194; Fax No. (630) 571-2723, notifying such contact of the name ofthe bank originating the wire transfer, the amount transferred and the date of transfer or (ii) at such other place or in such other manner as Lessor may from time to time designate on not less than thirty (30) Days' prior written notice to Lessee.

3.2.2 Date of Payment. Each regular monthly installment of Base Rent shall 'be paid no later than the first Day of the month for which such installment is due. ·

· 3 .2.3 Net Rent; Survival. The Rent payable under this Lease shall be paid to. Lessor without notice or demand and without abatement, deduction or setoff for any reason, whatsoever (except as otherwise expressly provided in this Lease). 'Lessee's obligation to pay Rent that shall have accrued during the Term hereof but remains unpaid shall survive the. Expiration Date or the Termination Date, as the case may be.

3.3 Interest on Overdue Payments. All Rent and other sums due Lessor hereunder not paid when due shall bear interest at an interest rate of 20% from the date which is five (5) Business Days after the date when due to the date of receipt thereof by Lessor without in any way limiting or modifying Lessor's other rights and remedies under this Lease arising by reason of a failure to pay such sums when due or by reason of any other Event of Default or Default.

3.4 Rent Net to Lessor; Additional Rent Components. The Rent required to be paid to Lessor under this Lease shall be net to Lessor in each Lease Year or portion thereof during the Term of this Lease, and Lessee shall pay, all ofwhich shall be Additional Rent Wlder this Lease, all costs and expenses and perform all obligations of every kind relating to the Premises and the Building or other Improvements that may arise or become due during the Term of this Lease, including, but not limited to, (i) all Impositions, insurance, maintenance, repair and similar expenses, (ii) all charges for gas, electricity, light, heat, power, telephone and other utilities and services, (iii) all assessments, general or special, that may be assessed by the Techny Property Association or any other similar association to which the Land or the leasehold interest created hereby is subject, as provided in Section 4.9 below, and (iv) all Transportation Impact Fees an,d

other fees required to be paid pursuant to the Annexation Agreement when and as required by the Transportation Agreement and Annexation Agreement, but only to the extent such fees are . required to be paid in connection with the development of the Premises. In addition, Lessee shall, at its sole cost and expense, procure any and all necessary permits, licenses or other authorizations required for the lawful and proper construction and operation of the Buildings and other Improvements on the Premises and for the lawful and proper installation and maintenance

upon the Premises and the Project of wires, pipes, conduits, tubes and other equipment and . appliances for use in supplying any service or utility described herein to, in or upon the Premises . and the Project. Lessee shall indemnify Lessor from and hold Lessor, Lessor's Beneficiary and their respective Protected Persons harmless against all such fees, charges, costs, expenses and .· obligations. In addition, Lessee shall indemnify the Techny Property Association from and hold • it harmless against all Claims (including without limitation those arising under Article 8 of this · Lease) arising out of the Work or any other work in connection with the Project, including any . work done in constructing, modifying or otherwise installing any improvements, including landscaping, within the Common Areas and Facilities. Nothing in this Section 3.4 shall, however, be construed as obligating Lessee to pay any of Lessor's taxes, which Lessee shall be· responsible to pay pursuant to Section 4.2 below. Any failure by Lessee to comply with the foregoing obligations within the applicable time periods specified in Article 17 or elsewhere in this Lease shall be an Event of Default under this Lease.

3.5 Reimbursement of Lessor's Costs and Other Expenses.

3.5.1 Reimbursable Expenses. In addition to other costs and expenses incurred by Lessor and payable by Lessee pursuant to Sections 4.6, 4.8,8.2, 12.3, 17.3 or as may be elsewhere specifically provided for under this Lease, Lessee shall reimburse Lessor for ali Reimbursable· Expenses. Notwithstanding the foregoing, Lessee shall not be required to reimburse Lessor for expenses incurred by Lessor that are related to the normal, customary and usual execution and performance of Lessor's obligations under this I:ease or in connection with this Lease, and in no event shall Lessor request reiml?ursement for any Reimbursable Expenses at a rate greater than would be charged to Lessor's Beneficiary by the same consultant during th_e. same period of time such expenses are charged to Lessee. Lessee's Initial Deposit of $25,000 shall be credited against Reimbursable Expenses otherwise due and payable to Lessor under this Section 3.5 and reimbursement of silch costs and expenses shall not be limited by the amount of Lessee's Initial Deposit of$25,000. At any time within forty-five (45) Days after Lessor subrriits a request for reimbursement for Reimbursable Expenses incurred by Lessor in excess of the Initial Deposit or any other amounts due Lessor as Reimbursable Expenses under this Lease, which request shall specify the amounts owed and reasonable details with respect to the nature of such costs, and the basis on which Lessor claims the right to reimbursement under this Section 3.5, Lessee may object in writing to the payment of such Reimbursable Expenses, whi¢h objection shall state the grounds on which Lessee objects, and if Lessor does not agree, then the dispute shall be· subject to the negotiation, mediation and arbitration procedures set forth in Article 18 as to the reasonableness of the amount of such Reimbursable Expenses or the appropriateness of the inclusion of any amounts in the Reimbursable Expenses claimed due Lessor, depending on the basis for Lessee's objection. If Lessee does not object to Lessor's request within such forty-five (45) Day period, such amounts shall be payable by Lessee no later than sixty (60) Days following delivery of the initial request by Lessor. ·

3.5.2 Participation by Lessor in Lessee's Project Approvals. If Lessee requests Lessor's participation in any negotiation, documentation, subdivision, traffic, zoning variation or. other governmental or quasi.,.govemmental proceedings or any other activities with respect to the Initial Project any Change or Alteration thereto or any Redevelopment Plan approved by Lessor. in which Lessor's approval or consent is requested or required by Lessee or any Governmental Authority, such participation shall be at Lessee's expense. However, Lessee may request in

advance of actually seeking Lessor's participatiop that Lessor advise Lessee as to whether Lessor anticipates incurring any Reimbursable Expenses in connection with such participation or. granting of such consent, then Lessor shall advise Lessee as to whether it anticipates incurring any such Reimbursable Expenses and the estimated amounts or anticipated basis on which such . costs may be incurred (which, in the case of consultant's fees, shall be at the same rates charged Lessor by any such consultant during the same period of time such expenses are charged to. Lessee), and Lessee shall have the right (unless precluded from doing so by any Governmental Authority) of electing not to request Lessor's involvement in connection therewith. If Lessee. elects to continue to request Lessor's participation or the granting of Lessor's consent, Lessor shall not be required to continue to participate or consent if Lessee has failed to pay any such. Reimbursable Expenses when due hereunder.

3.6 Mutual Cooperation.

3.6.1 Governmental Approvals. Subject to the reimbursement provisions of Section 3.5 above, Lessor and Lessee shall do all things necessary or appropriate to carry out the terms and provisions of the Lease and to aid and assist each other in carrying out the terms and. objectives of this Leas.e and the intentions of Lessor and Lessee as reflected by said temis, including, without limitation, the giving of such notices, the holdings of such public hearingS, the· enactment by -the Village or other Governmental Authority of such resolutions and ordinanees' and the taking of such other actions as may be necessary to enable Lessor and Lessee's compliance with the terms and provisions of this Lease and as may be' necessary to give effect to
the terms and objectives of this Lease and the intentions Lessor and Lessee as reflected by said. terms.

3.6.2 Permits. Lessor and Lessee shall cooperate reasonably with each otherin· seeking from any or all appropriate Governmental Authorities (whether federal, state, county or. local) all necessary permits and approvals and other aid and assistance required or useful for the construction or improvement of the Initial Project in and on the Land or for the provision of services to future residents or occupants of the Land including any Tenants, including grants and ·. assistance for public transportation, roads and highways, water and sanitary sewage facilities and storm water facilities, but neither Lessor nor Lessor's Beneficiary or any of Lessor's. Beneficiary's Affiliates will assume any obligations with respect to construction thereof or· repayment of any amounts received in connection therewith.

3.6.3 · Development of Other Real Estate Parcels; Prohibition on Health Club and; Fitness Center Uses Within the Premises. Lessee will cooperate, reasonably and in good faith,· with Lessor, the Village and other developers designated by Lessor for future development of the.· remaining undeveloped subparcels within Parcel EC.,.2; provided however, Lessee shall not be • required to so cooperate ifto do so would delay development of the Project, adversely impact the use of the Premises for the purposes permitted under Section 6.1 or the Project's operations, or.

result in Lessee incurring any costs or taking on any liability. Lessor shall reimburse Lessee for any out-of-pocket costs incurred by Lessee in cooperating with Lessor, the Village and other developers that do not inure to the benefit of Lessee or Lessee's Project Lessee shall not permit the use and occupancy of the Premises, the development of any Project thereon or operation.·

thereof to be conducted in a manner that interferes with the use or operation of, or any •

development projects on the remaining ·subparcels within Parcels SE-1, EC-1, EC-2 and the Techny

Outlot, nor with development projects on any other Parcels located on the Techny Land~. but the foregoing shall not prevent Lessee from the development of the Project in accordance . with the Final Plans and. Specifications and normal use of the Project and the Premises for the Permitted Use. Without limiting the foregoing, pursuant to that certain Ground Lease dated. September 1, 1999 between Chicago Title Land Trust Company, as successor trustee to Cole' Taylor Bank, under a trust agreement dated August 20, 1999 and known as Trust No. 99-8160 and Five Seasons Country Club of Northbrook, Inc., an Ohio corporation "Five Seasons"), as • evidenced by that certain Short Form and Memorandum of Lease dated as of September 1, 1999, recorded on December 22, 1999, as Document No. 09188727 (collectively, the "Five Seasons Ground Lease"), Lessee and all Tenants or other occupants, are expressly prohibited from developing, owning or operating a health and fitness center on the Premises similar to the year-· round suburban country club (without a golf course or a hotel) that is presently owned and·. operated by Five Seasons and includes amenities such as tennis (indoor and outdoor), swimming• (indoor and outdoor), fitness center, gym, day spa and beauty facilities, child care services, and a variety of dining. facilities (the "Five Seasons Suburban Country Club"), or any other business. similar in nature to the Five Seasons Suburban Country Club, including without limitation, a· dedicated sports training or fitness facility such as a tennis club, health club, fitness club or type of suburban country club similar to Five Seasons Suburban Country Club, unless such project· includes such uses only as uses ancillary to a different primary use (such as a fitness center contained within a full service hotel or ice skating or indoor soccer field facility).

3. 7 Public Reiations; Temporary Signs. Neither Lessor nor Lessee will issue any press release or any other public information respecting the proposed development of the Project without the prior written approval of the other party. Lessee shall have the right to place appropriate temporary signs on the subject property describing the proposed development, subject in each case to the prior written approval of Lessor's Committees with respect to the design, size, location and content of the text of any such sign, and subject to compliance with, applicable Village ordinances.

3.8 Disputes. Disputes arising under this Article with respect to (i) whether any increase in the Base Rent is required as a result of any Added Component pursuant to Section 3.1.4 (or. the calculation of such increase in the Base Rent on account of such Added Component), (ii) the,· amount of any Reimbursable Expenses for which Lessee is liable under Section 3.6, and (iii) any of the matters described in Section 3.6 {but not Section 3.6.3 unless such dispute also involves Five Seasons and Five Seasons is joined in such proceedings and the obligation to participate in such proceeding is also binding on Five Seasons) shall be .subject to the negotiation and mediation rbitration pursuant to Article 18. ·

ARTICLE4

Impositions and Association Assessments

4.1 Payment of Impositions.

4; 1.1 Obligation to Pay. In addition to Base Rent and as Additional Rent , , hereunder, Lessee shall pay when due, before any fine, penalty, interest or cost

may be added , thereto for the late or non-payment thereof, all Impositions that are assessed, levied or imposed upon or become a lien upon or with respect to all or any portion of the Premises and the Project .. or any portion thereof or interest therein at any time during the Term of this Lease, whether or not payable during the Term of this Lease and irrespective of the Person on which the taxing authority may impose any such Impositions; provided, however, that any Imposition relating tQ a • fiscal period of the taxing authority, a part of which period is included within the Term of this Lease, and a part of which is included in a period of time either after the Expiration Date or prior, to the Commencement Date, shall be adjusted as between Lessor and Lessee as of the Expiration Date or the Commencement Date, as the case may be (whether or not, during the Term of this Lease, such Imposition shall be assessed, levied, or imposed upon or become due and payable and a lien upon the Premises or the Building or other Improvements and any part thereof), in , order that Lessor shall pay that proportion of such Imposition which the part of such fiscal period included in the period of time after the Expiration Date or prior to the Commencement Date, as, the case may be, bears to such fiscal period, and Lessee shall pay the remainder thereof. ,

4.t2 Installment Payments. If, by law, any Imposition is payable, or may at the: option of the taxpayer be paid, in installments (whether or not interest shall accrue on the unpaid balance of such Imposition), Lessee shall or may elect, as the case may be, to pay the same, • together with any accrued interest on the unpaid.-balance of such Imposition, in installments as the same respectively become due and before any fine, penalty, interest or cost may be added thereto for the non-payment of any such installment and interest. Lessor shall pay the: installments thereof that become due and payable prior to the Commencement Date and, subsequent to the date the Term ends, and Lessee shall pay those installments that become due and payable after the Commencement Date and prior to the date the Term ends. , ,

4.1.3 Real Estate Taxes. As contemplated above, unless during the Term the State of Illinois or Cook County modifies its method of assessing and paying those Impositions that constitute real estate taxes, the payment of such Impositions by Lessee hereunder shall be oh an accrual basis. As such, Lessor shall be responsible for the 2006 real estate taxes payable in 2007 if any, and that portion of the 2007 real estate taxes payable in 2008 for the period January I, 2007 through the day before the Effective Date, if any, and Lessee shall be responsible for ru.e real estate taxes for that portion of the 2007 real estate taxes payable in 2008 from and including the Effective Date through December 31, 2007 and for the entire Term of this Lease payable in the calendar year following the date the Term ends. Lessee shall pay to Lessor on or before the date the Term ends a cash deposit in an amount equal to one hundred five percent (105%) of the last actual tax bill or bills for such Impositions (or if the taxable year for which such Impositions are to be assessed is a triennial reassessment year, one hundred ten percent (110%) of the last actual tax bill). Following receipt of the final bill for real estate taxes payable during the last Lease Year, upon notice from Lessee or Lessor, Lessor shall promptly refund to Lessee withoUt

interest any amount by which the amount so deposited exceeds the actual real estate taxes for such Lease Year applicable to the period prior to the date the Term ends plus any amounts Lessor collects from any Tenants under any Tenant Lease for any such real estate taxes, or· Lessee shall promptly pay to Lessor without interest any amounts by which the actual real estate taxes for such Lease Year applicable to. the period prior to the date the Term ends exceeds the : amount so deposited plus any amounts Lessor collects from any Tenants under any Tenant Leas<:i

for any such real estate taxes.

4.2 Lessor's Taxes Not Included in Impositions. Nothing contained in this Lease shall require Lessee to pay any franchise, estate, inheritance, succession, capital levy or transfer tax • imposed on Lessor or Lessor's Beneficiary, or any income, excess profits or revenue tax imposed. on Lessor or Lessor's Beneficiary, except that Lessee shall pay (a) any such tax which is, in. whole or in part, in substitution for or in lieu of any other Imposition which Lessee is obligated: to pay under Section 4.1, and (b) any rent tax described in Section 4.8 regardless ofwhether such· rent tax is, in whole or in part, in substitution for, or in lieu of any tax which Lessor is obligated to pay pursuant to this Section 4.2.

4.3 Proof of Payment of Impositions. If requested by Lessor, Lessee shall furnish to Lessor, within thirty (30) Days after the date of any such request, official receipts of the appropriate Governmental Authority, or other proof reasonably satisfactory to Lessor, evidencing the payment of any Imposition. The bill, certificate or advice of the non-payment of any Imposition made or issued by the appropriate official designated by law to make or issue the: same or to receive payment of any such Imposition, shall be prima facie evidence that stich Imposition is due and unpaid at the time of the making or issuance of such bill, or certificate or advice.

4.4 Notices of Impositions. Lessor shall endeavor to send to Lessee, within thirty (30) Days of Lessor's receipt thereof, copies of any notices of Impositions or proposed Impositions received by Lessor from any Governmental Authority; provided, however, that Lessor's failure to send any such notice to Lessee shall not relieve Lessee from any obligation hereunder if Lessee has actual notice of such Imposition. · ·

4.5 Right to Contest Impositions.

4.5.1 Conditions to Lessee's Right to Contest: Security. Lessee shall have the right to contest the amount or validity of any Imposition or proposed Imposition by appropriate legal proceedings; provided, however, that this right shall not be deemed or construed in any way to relieve, modify or extend Lessee's obligation to pay any Imposition at the time and in the manner provided in this Article 4, unless (a) the legal proceedings shall operate to prevent the sale of the Premises, the Buildings, any other Improvements or any part thereof and the foreclosure of any lien thereon to satisfy such Imposition prior to the final determination of such proceedings, and to prevent any judgment being entered against Lessor, Lessor's Beneficiary or any Affiliate of Lessor's Beneficiary, and (b) Lessee shall, at all times while such proceedings are pending, keep on deposit with Lessor or a Proceeds Trustee, as security for the payment of such Imposition, either (x) a sum of money, a surety bond issued by an insurance compariy acceptable to Lessor or such other security as may be reasonably satisfactory to Lessor, which may, in some circumstances if approved by Lessor, include appropriate title insurance coverage

in a title policy issued to Lessor by a title insurance company approved by Lessor and in a form • reasonably approved by Lessor (such money, bond or other security is hereinafter called "Security"), in .any such case in an amount (calculated as of the date as of which any determination is made under this Section 4.5) at least equal to one hundred ten percent (110%) of the sum of (i) the amount of such Imposition, (ii) all interest and penalties payable in connection therewith, and (iii) all charges that may or might be assessed against or become a charge on the · Premises, the Buildings, other

Improvements or any part thereof in said legal proceedings, or (y) • a guaranty, provided such guaranty is in a form reasonably satisfactory to Lessor by Lessee and · is made by a Person reasonably approved by Lessor at such time as to financial capability .. Notwithstanding the foregoing, so l()ng as any Leasehold Mortgagee holds the Security required to be deposited by Lessee hereunder, or its equivalent (as reasonably detennined by Lessor), such Security shall not be required to be deposited with Lessor provided such Leasehold Mortgagee agrees in writing with Lessor not to release such Security until the Imposition has been paid or otherwise discharged in full or to pay any such Security on demand by Lessor to satisfy any Impositions under the circumstances described in Section 4.5.2 below.

4.5.2 Use of Security. Any such Security or guaranty shall hold Lessor, Lessor's Beneficiary, all Affiliates of Lessor's Beneficiary, and the Premises harmless from any damage arising out of the legal proceeding to contest any Imposition or proposed Imposition and shail assure the payment of any judgment Any Security so deposited and any monies realized under. any bond provided as Security hereunder shall be deemed to be held by the recipient for the uses and purposes prescribed by this Lease. Upon the termination of such legal proceedings, Lessee shall promptly and fully discharge (i) any interest and penalties accrued in connection therewith; (ii) the payment, removal and discharge of the Imposition then payable, and (iii) the charges accruing in such legal proceedings, in which case any Security so deposited or realized shall; except as oth~se provided in Section 13.3, be paid or returned to Lessee. If Lessee shall fait promptly and fully to discharge such amounts, then any Security so d~posited or realized shall be applied to (1} any interest and penalties accrued in connection therewith, (2) the payment, removal and discharge of the Imposition then payable, if any, and (3) the charges accruing iri such legal proceedings, in that order, and the balance, if any, shall, except as otherwise provide<\ in Section 13.3, be paid or returned to Lessee. In the event that the Security shall be insufficient for this purpose, Lessee shall forthwith pay over to the person holding the Security hereunder an amount of money sufficient, when added to the Security so deposited pursuant to this Section 4.5, to pay the same. In the event (x) Lessor shall reasonably determine that the failure ·
on the part of Lessee to pay any such Imposition while such legal proceedings are pending or the failure by Lessee to diligently pursue such proceedings will no longer prevent the sale of the Premises, Building, any other Improvements or any part thereof or the foreclosure of the lien thereon, or (y) any Event of Default by Lessee occurs under this Lease, Lessor or any other person then holding any Security under this Section 4.5 is authorized upon a demand by Lessor to realize on the Security and apply all or part of the proceeds ·of such Security to pay suCh Imposition, or to apply any such Security on account of such Event of Default, or to take such action as may be deemed necessary or advisable to enforce any guaranty, all as determined by Lessor in its sole discretion. ·

4.6 Notice of Intent to Contest Impositions; Costs. Lessee shall promptly notify Lessor of its intent to contest any Imposition without paying any amounts in dispute. Lessor shall not be required to join in any proceeding therefor, unless it shall be necessary for Lessor to

do so in order properly to prosecute such proceeding and Lessor shall have been fully indemnified to its reasonable satisfaction against all costs and expenses, including attorneys' · fees, in connection therewith. Lessor shall not be subjected to any liability for the payment of · any costs or expenses, including attorneys' fees, in connection with any proceeding brought by Lessee, and Lessee shall indemnify and save Lessor harmless from and against any such loss; costs or expenses. In addition, Lessee shall reimburse Lessor for any reasonable atto~eys' fees • and costs incurred by Lessor in reviewing or approving any Security and in monitoring the status of any Imposition being contested. Such fees and costs shall be deemed Additional Rent payable by Lessee hereunder and shall become due and payable by Lessee immediately after the same · shall have been paid by Lessor and notice thereof shall have been given to Lessee, and shall bear interest at the Lease Interest Rate from the date of such payffient by Lessor until the date when · paid by Lessee. ·

4.7 Tax Parcel Divisions. Lessor, at its sole cost and expense, shall file and Lessee • shall cooperate in filing the necessary petitions, applications or other instruments with the applicable Governmental Authority necessary to effect a division or consolidation of the tax · parcel permanent index number or numbers assigned to the Land in order for a separate real . estate tax or other hnpositions bill or bills to be issued with respect to the Premises and all Buildings and other Improvements located thereon from the balance of the Techny Land. In . connection therewith, Lessee shall make available to Lessor, at Lessee's expense, copies of any surveys of the Land or any other land included within any tax parcel permanent index number or numbers to be divided that are in Lessee's possession or available to Lessee for purposes of such • petition or application and shall provide any other information requested by the applicable Governmental Authority to effect such division at Lessee's expense. If Lessee desires to effect · any further division of such tax parcel permanent index number or numbers for purposes of more .. fairly allocating Impositions among those portions of the Premises subleased to Tenants or payable by Tenants, Lessor shall cooperate with Lessee in filing the necessary petitions, applications, or other instruments, all at Lessee's cost.

4.8 Rent Tax. If, at any time during the Term of this Lease, under the laws of any applicable Goveriunental Authority, a tax or excise on rents or other tax, however described,· is· levied or assessed by said Governmental Authority against Lessor or upon the receipt of rent, . which is not in substitution for or in lieu of any taxes which Lessor is obligated to pay pursuant • to Section 4.2, Lessee shall pay and discharge such tax or excise on rents or other tax but only . (a) to the extent of the amount thereof which is lawfully assessed or imposed upon Lessor and. that was so assessed or imposed as a direct result of (i) Lessor's ownership of the Premises, (ii) · this Lease, or (iii)· the Rent payable under this Lease; and (b) if such ·tax is not a tax required .. pursuant to Section 4.2 to be paid by Lessor. The payment to be made by Lessee pursuant to this . Section 4.8 shall be calculated (if such tax has a progressive rate structure as opposed to a flat • rate structure on all rent received by Lessor or Lessor's Beneficiary from all properties) as if the· Premises were the only property owned by Lessor or Lessor's Beneficiary that is subject to such • tax, and shall be paid by Lessee within (1 0) Days after being billed therefor by Lessor and, in all events, before any fine, penalty, interest or costs may be added thereto for the non-payment thereof. Lessee covenants to furnish to Lessor, within thirty (30) Days after the date when the . same is payable, official receipts or other evidence satisfactory to Lessor that such tax or excise· on rents or other tax has, to the extent aforesaid, been paid. Such tax or excise on rents or other tax referred to in this Section 4.8 shall be Additional Rent.

4.9 Techny Property Association Membership and Assessments. Lessee acknowledges and understands that by executing and delivering this Lease, Lessee will automatically be and become a member in the Illinois not-for-profit corporation named the . "Techny Property Association" ("Techny Property Association"), created pursuant to that certain "Declaration Establishing Covenants, Conditions, Restrictions, Easements and Rights for Real Estate Parcels NC-1, EC-1, EC-2 and SB:·l within the Techny Property, Northbrook, Illinois, and Providing for the Techny

Property Association" dated as of July 13, 1999, and recorded on November 12, 1999, in the Office of the Recorder of Cook County, Dlinois,. as Document No. 09067537 (as the same has been amended by the Amended and Restated Declaration, and thereafter, as such Amended and Restated Declaration may from time to time be amended as provided therein, the "Declaration"). The Techny Property Association is an association of owners and ground lessees of certain portions of the Techny Land and . is· responsible for the continuity, care, conservation, maintenance, and operation in a first-rate condition and in accordance with predetermined standards of all Common Areas or Facilities. As a member of the Techny Property Association, Lessee shall be subject to the easements, terms, conditions and provisions of the Declaration, including without limitation, the obligation to pay its share of all costs and expenses incurred by the Techny Property Association in carrying out its responsibilities by means of an assessment against the Project and Lessee levied by the Techny Property Association pursuant to the Declaration. In addition, Lessee shall indemnify the Techny Property Association from and hold it harmless against all Claims (including without limitation those arising under Article 8 of this Lease) arising out of the Work or any other work in connection with the Project, including any work done in constructing, modifying or otherwise · · installing any improvements, including landscaping, within any Common Areas or Facilities.

ARTICLES

Construction of the Building and Improvements

5.1 Approval of Preliminary and Final Plans.

5_.1.1 Submittals to Lessor's Committees. Lessor acknowledges that, prior to the Commencement Date, Lessor's Committees approved proposed Final Plans and Specifications consisting of proposed final site engineering for the Initial Project dated September 25, 2007, prepared by Haeger Engineering, a list of which is attached hereto as part of Exhibit M, and proposed building and architectural plans and specifications for the Initial Project dated October 29,2007, prepared by Economou Partners, a list of which is attached hereto as part ofExhibit M, but subject in the case of both sets of plans to the matters identified in the memorandum from Alper & Alper dated December 13, 2007 to the Techny Land Committee, Attention: Rev. Walter Bracken, S.V.D., Chairman, Techny Land Committee and accompanying letter from Rev. Walter Bracken to Lessee dated December 17, 2007, copies of which are attached hereto as Exhibit N. ·
From and after the Commencement Date, such proposed final site engineering and proposed Final Plans and Specifications identified in Exhibit M shall, for all purposes of this Lease, but subject to the matters described in Exhibit N, which shall be addressed by Lessee in the Fin:al Plans and Specifications for the Initial Project, be deemed . the proposed Final Plans and Specifications for the Initial Project to be submitted by the applicable dates set forth in the Preliminary Schedule attached hereto as Exhibit D. To the extent not prepared by Lessor or. delivered to Lessor by Lessee prior to execution and delivery of this Lease, not later than the date

set forth on Exhibit D, in the case of Lessee's Final Plans and Specifications (each such date by which any of the foregoing submittals is required to be submitted is ca11ed a "Submittal Date"); . Lessee shall submit to Lessor (prior to submitting the same to the Village), for review and· approval by the Society of the Divine Word's Techny Land Committee, House Council,. Provincial Council or any other governing or policy-making body or committee from time to time designated by Lessor's

Beneficiary (any or all of such approval bodies or committees, collectively, "Lessor's Committees") all of the following with respect to the development ofthe Premises: · ·

(a) Plans. Lessee's proposed Final Plans and Specifications for the Initial Project to be developed by Lessee on the Premises, construction of which Lessee· is' required to commence and complete pursuant to Section 5.2 below which incorporate the changes or missing elements required to be addressed pursuant to Exhibit N. · ·

(b) Off-Site Improvements; Utility Plans and Easement Locations. To the· extent not previously commissioned and completed by Lessor or other lessees of portions of the Techny Land (or required to be completed by Lessor pursuant to Section 5.4), the Final Engineering drawings for (1) any On-Site Improvements, as required by Subsection 4(c)(ii) of the Annexation Agreement (including on-site wetlands mitigation, if any, required by applicable Governmental Requirements); and (2) the proposed Final· Engineering drawings or plans for any sanitary or storm water systems, water distribution: systems and all other public and private improvements not located on the Premises, but appurtenant thereto or to be located within easements or proposed easements located on the Premises or other portions of Lessor's Techny Land and required by the Village or. other Governmental Authorities (whether pursuant to the Subdivision Agreement.o:f otherwise, and including wetlands mitigation, if any, required by any applicable Governmental Requirements) to be constructed as a condition to or as a part of constructing the Initial Project (such systems and improvements being referred· to collectively as the "Off-Site Improvements") pursuant to the Off-Site Improvement Plans.

(c) Schedule. An update to the Preliminary Schedule for the Work for review and approval by Lessor as the Approved Schedule for the Work.

(d) Signs. All of Lessee's plans with respect to any outdoor signage.

None of the foregoing Submittals shall be deemed to have been submitted to the Society of the Divine Word or Lessor's Committees for approval unless such Submittal is accompanied by a written request for approval. Only proposed Final Plans and Specifications submitted to Lessor with a written request for approval will be submitted to Lessor's Committees for approval. All other drafts or proposed Final Plans and Specifications delivered to Lessor's consultants,. attorneys or agents shall be deemed delivered for purposes of comment and preliminary review only. Lessor shall approve any proposed Final Plans and Specifications for any portion of the Project, any Major Change or any approved Redevelopment Plan submitted by Lessee pursuant to Section 5.l.l(a) above or Article 12, as the case may be, provided that they are, in Lessor~s reasonable judgment,.substantially consistent with and the logical extension of the previously

)

approved Final Plans and Specifications or as required to satisfy any Governmental Requirements.

5 . .1.2 Informal Cooperation, Review and Comment. Prior to submitting a Submittal, Lessor shall cooperate with Lessee in good faith in Lessee's creation and development of any Submittal by permitting Lessee to present to Lessor (or to Lessor's consultants designated

from time to time) any informal, preliminary submittals or elements of any proposed Submittal · prior to the date on which a Submittal is made formally to Lessor in accordance with • Section 5.1.1 above. Lessor shall, to the extent within Lessor's reasonable control, endeavor to direct its consultants to review any such preliminary submittals and to provide comments, . advice, informal suggestions and criticisms, upon request, with the intent that through such · process, Lessee's Submittal, when presented to Lessor's Committees, shall have had the benefit ofinput and advice of such of Lessor's consultants as have previously reviewed and commented on any such preliminary submittals; No elements of any preliminary submittals shall be submitted to the Village or to any other Governmental Authority for approval or the issuance of permits without the prior written approval of Lessor's Committees, and no comments, advice,. approval or suggestions with respect to any preliminary submittal by any of Lessor's consultants shall be binding on Lessor. Lessee shall, upon demand, reimburse Lessor in accordance with. Section 3.5 for all reasonable out-of-pocket expenses incurred by Lessor in connection with Lessor's review of any Submittal, preliminary submittals related thereto or participation in any proceedings or applications that may be required by any Governmental Authority in connection. with the Approved Plans in excess of the deposit or deposits made for Reimbursable Expenses as provided elsewhere in this Lease.

5.1.3 Presentation of Submittals; Approval Process. Lessee shall, in connection with providing to Lessor any of the Submittals, appear before such of Lessor's Committees as Lessor may reasonably specifY to present and explain Lessee's Submittals with the aid of such: drawings and such graphic displays and other information as Lessor may reasonably request, but in no event shall a model be required. Within thirty (30) Days after the later of (i) Lessor's receipt of the last of Lessee's Submittals for any portion of the Project, and (ii) Lessee'.s presentation and explanation of the same to Lessor's Conunittees, Lessor will, or will cause its consultants to, review such Submittals and deliver to Lessee notice of either (A) Lessor's approval of such Submittals or (B) Lessor's disapproval of such Submittals accompanied by a . reasonably detailed written statement of Lessor's reasons therefor. Lessee shall as promptly as practicable after receipt of any notice of disapproval revise and resubmit such Submittals to Lessor. Lessor shall examine such revised Submittals and, as promptly as practicable after receipt of the same, shall deliver to Lessee notice of either (x) Lessor's approval of the revised. Submittals, or (y) Lessor's disapproval of the revised Submittals, accompanied by a reasonably detailed written statement of Lessor's reasons therefor. If Lessor has failed to provide a notice of approval or disapproval within thirty (30) Days after the date of the later of Lessor's receipt of such Submittal or the date of Lessee's presentation and explanation of the same to Lessor's. Committees, Lessee shall submit a second notice containing all of the same materials as were included in the first Submittal to Lessor, marked with the words "SECOND NOTICE" on the. . envelope, in capital letters and in a type size of at least Times New Roman 14 or Arial 14 font, and at the top of the first page of such notice stating "DEEMED APPROVAL NOTICE," and which states in the body of the notice in all capital letters the following: "IF NO RESPONSE IS RECEIVED WITHIN TEN (10) BUSINESS DAYS, TilE REQUEST SHALL BE DEEMED

APPROVED UNDER SECTION 5.1.3 OF THE GROUND LEASE" ("Second Notice")t and. attempt to telephone Lessor to obtain a response to the Second Notice. If Lessor has not responded to Lessee's second request either with a notice of approval or disapproval stating why . Lessor does not consent within ten (10) Business Days following Lessor's receipt of the Seconcl: Notice; then Lesseets Submittal shall be deemed approved. Promptly following receipt of Lessor's approvals of

Lesseets Submittals with respect to any of Lesseets proposed Final Plans·. and Specifications (such Final Plans and Specifications as so approved shall constitute the· "Approved Plans"), Lessee shall proceed with all due diligence to obtain approval of the Approved Plans from all applicable Governmental Authorities (if required) and thereafter to . obtain the necessary building permits and all other permits from the Village and any other . applicable Governmental Authorities that are required to construct the Initial Project (including . all On-Site Improvements and Public Improvements, including Traffic Improvements, if any, . required to be constructed as a part of the Initial Project consistent with the Approved Plans), and to construct such portion of the Off-Site Improvements and Public Improvements (including any. Traffic Improvements, if any) as are required by the Village under the Transportati<:m Agreement · or any other Governmental Authorities as a condition to constructing the Improvements to be · included in the Initial Project, any Change or Alteration or any Redevelopment Plan in accordance with the Approved Plans therefor and which Lessor has not elected to construct as . provided in Section 5.1.4.

5.1.4 Exempt Subdivision Activity; Transferee Agreement. If and to the exteri,t not provided prior to the Commencement Date, Lessee shall engage V 3 Consultants, Ltd. • to prepare an ALTA certified land title survey or surveys for the Project for purposes of the "Notic~· of Exempt Subdivision Activity," a draft form of which is attached hereto as Exhibit P required. to be given by the Society to the Village under the Annexation Agreement as a condition to entering into the ground leases. In addition, if required, as promptly as possible following. execution and delivery of this Lease, but in all events prior to issuance of any building permit for the Initial Project, Lessee and Lessor shall enter into the Transferee Agreement with the Village,. the form of which is attached hereto as Exhibit Q. with respect to Lessee's obligation • to construct any Off-Site Improvements and other Improvements that are considered Public Improvements under the Annexation Agreement or other applicable codes and ordinances of the· Village, and· Lessee shall pay the fees due under the Transferee Agreement, deposit all letters of credit or other security and obtain all permissions required by the Village in connection with the Transportation Agreement, the Subdivision Agreement and the Transferee Agreement, in, connection with the construction of the Off-Site Improvements and Public Improvements, if any, Lessee is to construct.

5.1.5 Lessor's Discretion With Respect to Approvals. Lessee acknowledges and agrees that Lessor or Lessor's Committees shall have sole and absolute discretion, subject to the limitations and conditions set forth below, with respect to: (i) the approval of Preliminary Plans, for the Initial Project, any Changes or Alterations and any Redevelopment Plan (as the case may be); (ii) any elements of or changes in the Final Plans and Specifications developed from the Preliminary Plans approved by Lessor that are not, in Lessor's reasonable judgment; substantially consistent with and the logical extension of the previously approved Preliminary Plans for the Initial Project, any Changes and Alterations or any Redevelopment Plan (as the case may be); and (iii) such information on the identity and fi~ancial capability of Lessee's propose:d) Guarantor (if not approved by Lessor prior to the date of this Lease} as is reasonably required in

order for Lessor to evaluate such proposed Guarantor, and such other information as Lessor requests. Lessee further acknowledges and agrees that Lessor (x) may approve, conditionally approve, or disapprove any Preliminary Plans, (y) may approve, conditionally approve or disapprove any changes to any Preliminary Plans contained in the Final Plans and Specifications . which are submitted to Lessor for any reason whatsoever with respect to the Initial Project or any Changes and Alterations thereto or any proposed Redevelopment Plan (if they are not, in Lessor's

reasonable judgment, substantially consistent with and the logical extension of the previously approved Preliminary Plans), or (z) may approve, conditionally approve or disapprove any proposed Guarantor not meeting the applicable requirements for such Guarantor set out in this Lease. Any notice of approval or conditional approval shall be in writing and, ·in. ·
the case of a notice of disapproval or conditional approval shall include a reasonably detailed · explanation of the reasons for such disapproval or conditional approval. However, following: Lessor's approval of any Preliminary Plans, Lessor shall not unreasonably withhold its approval to any Final Plans and Specifications or to any proposed Changes and Alterations thereto if such · Final Plans and Specifications or Changes and Modifications (1) are aesthetically consistent with and a logical extension of the previously approved Submittals, Redevelopment Submittals .or: Final Plans and Specifications; (2) are in conformance with the standards set forth in the Village of Northbrook Zoning Code adopted on November 22, 1988 by Ordinance No. 88-2, as amended by the Techny Overlay District provisions adopted pursuant to the Annexation Agreement ("Zoning Code ..); and (3) in the case of proposed Changes and Alterations or Redevelopment Submittals, are complementary to the then existing or planned developments on neighboring properties. By way of illustration of the meaning of the phrases "in Lessor's reasonable judgment, substantially consistent with and the ·logical extension of the previously approved Preliminary Plans" or "aesthetically consistent with and a logical extension of the previou~ly ·
approved Submittals, Redevelopment Submittals or Final Plans and Specifications," Lessor niay not disapprove (x) any element of a subsequent Submittal that was previously submitted ancl disapproved by Lessor, but which was revised by Lessee in the mannttr required by Lessor, or (y)' any element of such Submittal that existed on the previously approved prior stage of a Submittal that continues to be shown without modification. ·

5.1.6 Required Construction Materials; Initial Project Development. Lessee. acknowledges, understands and agrees that all Buildings on the Premises must be constructed of brick; provided, however, Lessor recognizes that Lessee intends to construct the Building of pre cast concrete panels on which a face brick veneer will be attached in accordance with the Approved Plans· with pre-engineered openings for windows. The Project shall contain a total combined Gross Square Feet of no more than approximately 47,134 Gross Square Feet (but may be adjusted by Lessee in the process of completing the Final Plans and Specifications or at any time thereafter up to a maximum of 100 additional Gross Square Feet, with the actual total Gross Square Feet of the Initial Project being determined by reference to the Approved Plans for the Initial Project as submitted to the Village for a building permit) without being considered. ari Added Component requiring an adjustment in the Base Rent under Section 3.1.4 above);: provided, however, that nothing in this Section 5.1 or in Section 3 .1.4 shall be deemed to modify the requirements of Section 5.2.4 with respect to Lessor's approval rights with respect to any Added Components. Any uses not permitted under the applicable zoning for the Premises shall be subject to Lessor's prior written approval in the same manner as required pursuant to Section 12.2 in connection with Added Components, which approval shall not be unreasonably withheld or delayed as long as the proposed use is consistent with the nature for the Project artd

Lessor believes it will not detract from the overall image of the other developments on the Techny Land. From time to time during the Term, Lessee may also construct, if approved a8 · provided in, as an Added Component or Added Components, additional Gross Square Feet of Buildings, up to the maximum permitted under the Annexation Agreement and the applicable zoning, subject to all of the applicable terms and provisions of this Article 5 and Article 12~ including without limitation, approval by Lessor of the Preliminary Plans and Final Plans and Specifications for each such Added Component, provided (x) the use is for a Permitted Use and as part of the approval by Lessor of the

Final Plans and Specifications for such Added
Component, and (y) the Base Rent payable under Section 3.1.3 is adjusted as provided. in . Section 3.1.4, effective as of the date specified in said Section 3.1.4. ·

5 .. 1. 7 Failure to Make Timely Submittals. In the event Lessee fails to submit its Preliminary Plans or Final Plans and Specifications for the Initial Project on or before the date which is thirty (30) Days after the Submittal Date, such failure shall be a Default under Section 17 .1.5 of this Lease that, if it is not cured within the applicable notice and cure periods provided in Section 17.1.5 of this Lease, will entitle Lessor to terminate this Lease with respect to the entire Premises, if such Default is not cured within the applicable notice and cure periods provided in Section 17.2.2. If Lessor so elects to terminate this Lease, in addition to the other rights and remedies afforded Lessor under this Lease, the entire amount of any Initial Deposit, Holding Rent and all other Base Rent or other amounts previously paid by Lessee (or previously paid with respect to such portion of the Land as to which this Lease is terminated) shall be. forfeited to ·Lessor.

5.1.8 Lessor's Limited Rights to Approve Tenant Plans for Tenant Finish Improvements. For purposes of this Section 5.1.8 and Section 12.1.1, Lessor's right to approve Preliminary Plans and Final Plans and Specifications for the Initial Project, any Changes or · Alterations shall not include any Tenant Finish Improvements unless, and to the extent they include any of the following: (i) Changes or Alterations to any structural members of the Building in which any Tenant's premises are located or screening of base Building components· (such as base Building heating, ventilating and air conditioning systems, mechanical, electrica'l and other Building systems, including exterior rooftop mounted units and related screening that. are visible from the exterior of the Building), but not interior Building components themselves, none of which shall be subject to Lessor's approval), (ii) parapet wall, roof top or exterior mounted signage visible (whether lit or unlit) from outside the boundaries of the Premises, or separate tenant-installed or Tenant Space exterior rooftop mounted signage, and (iii) any separat~. new Buildings or any other exterior wa11 or other outside features of any Buildings or other Improvements to. be constructed, including trash receptacles, loading areas or docks and other. non-public service entrances. As part ofits approval of the Preliminary Plans and the Final Plans· and Specifications for the Initial Project, any Added Components, any Changes or Alteration and • any Redevelopment Plan, Lessor shall have the right to approve the following: (1) all free'- standing monument signs; (2) all Tenant signs; (3) all parapet wall or roof top signs and any· changes to any of the foregoing, regardless of whether such signs are lit or unlit. Lessor shall approve any revisions to any sign that are required by any applicable Governmental • Requirements.

5.l.9 Applicability to Future Work. The provisions of Sections 5.1.1 through· 5.1.8 above shall also apply to approval of any Added Component proposed by Lessee from time

to time and to any Changes and Alterations or Redevelopment Plan under Article 12 proposed by· Lessee from time to time, to the extent provided in said Article 12.

5.2 Lessee's Obligation to Construct Initial Project; Added Components.

5.2.1 Improvements Comprising the Initial Project. Lessee understands and

acknowledges t11at Lessee's financial ability to continue to make timely payments of the Base, Rent payable to Lessor under this Lease is dependant upon completion of the Initial Project in a. timely fashion in accordance with the Approved Schedule so that the Buildings may be occupied by Lessee as rapidly as possible. Accordingly, Lessee covenants to construct and develop the Initial Project on the Land, which Initial Project shall consist of the following:

· (a) Buildings. The Building or Buildings included in the Submittals approved· by Lessor for the Initial Project.

(b) Appurtenant On-Site Improvements. All other Improvements appurtenant· to the Building or Buildings to be constructed as part of the Initial Project or required in· connection with such Building or Buildings, including, without limitation, all roadways, • driveways, parking facilities, landscaped areas, water, sanitary and storm sewer mains and lines, service lines and other similar improvements, whether or not any of the · foregoing are conveyed to the Village as Public Improvements, signage, and all other . facilities or amenities constructed for the benefit of the owners, members, patrons~ · invitees, users or occupants (including any Tenants) of such Building or Buildings ot other Persons, such as the contractors, agents, employees or invitees of any of thein~, including storm water detention and retention facilities consistent with Lessor's • requirements and signage (said Buildings or any additional or replacement Buildings and all other improvements constructed or developed on the Land, including all Added.· Components, together with any renewals or replacements thereof, Changes and · Alterations or Major Changes thereto, additions thereto and substitutions therefor, including any improvements constructed pursuant to a Redevelopment Plan approved by · Lessor pursuant to Section 12.3, but excluding any of the foregoing that are Public Improve:n:tents after dedication thereof to and acceptance by the Village as contemplated.· in Section 5.5, are herein referred to as the "Improvements"). ·

(c) Certain Tenant Finish Improvements. Those Tenant Finish Improvements· or interior build-outs, if any, for Tenants that Lessee has agreed to construct for a Tenant. in any of the Initial Project pursuant to a Tenant Lease signed before Substantial. Completion of the base Buildings and other Improvements for the Initial Project.

Such development and construction shall be completed within a fixed period of time substantially in accordance with (A) the Approved Plans and Approved Schedule that have been approved by Lessor pursuant to the procedures outlined in Section 5.1, and (B) the Final Plans and Specifications comprising the Approved Plans approved by and deposited with Lessor (and . any additional drawings, plans and specifications and change orders as may subsequently b¢ approved by Lessor). In addition to the Improvements comprising the Initial Project, Lessee · covenants to construct the following that are required by the Village to be constructed iti connection with the development of the Land ·pursuant to all applicable Village codes, the

Annexation Agreement or the Transportation Agreement and the requirements of any other · Governmental Authority: (1) all On-Site Improvements for the Initial Project, including any Public Improvements within the Premises from the point at which they terminate (and any modifications or improvements thereto required by the Village in connection. with any Added · · Component); and (2) all connections to existing Off-Site Improvements from the Improvements and any Added Components.

5.2.2 Initial Project Guarantors: Funding. Concurrently with the execution and . delivery of this Lease to Lessor's Beneficiary for execution by Lessor, Lessee shall procure and . deliver to Lessor's Beneficiary a Guaranty of Payment and Performance of Ground Lease Obligations in a form attached hereto as Exhibit F from Wilmette Hockey Association, Inc. and Winnetka Hockey Club, Inc. ("Hockey Club Guaranty") which guaranty includes the . following: (a) a commitment to fund the cost of all Preliminary Plans, Final Plans and· Specifications, Base Rent, Tenant Lease negotiations (including any Preliminary Plans or Final Plans and Specifications for any work associated with Tenant Finish Improvements required.to. be provided by Lessee as the landlord under any Tenant Leases executed before Substantial Completion of the base Buildings and other Improvements comprising the Initial Project) and· other amounts due under this Lease or any Tenant Lease or otherwise required to permit the Final Plans and Specifications for the Initial Project to be issued for Lessor's approval by the· date specified in the Approved Schedule, and (b) a guaranty of the Substantial Completion of all Work in connection with the Project, including On-Site Improvements, Buildings and other Improvements included in the Initial Project, as well as all Tenant Finish Improvements Lessor has agreed to construct for a Tenant pursuant to its Tenant Lease pursuant to the Final Plans and, Specifications for all such Work, approved by Lessor's Committees, if and to the extent required pursuant to this Lease.

5.2.3 Added Components. Lessor recognizes that Lessee's proposed Final Plans and Specifications for the Initial Project do not include the maximum Gross Square Feet of Buildings that may be constructed on the Premises under the Annexation Agreement and Zoning Code. However, Le8see may, from time to time during the Term, submit Preliminary Plans and other materials required pursuant to and in accordance with the Submittal process set out in Section 5.1 for additions to the Initial Project consistent with the overall nature of the Permitted·
Use for the Initial Project (each of such additions to the Building and other Improvements constructed from time to time during the Term after Substantial Completion of the Initial Project, as approved by. Lessor through such Submittal process, are herein referred to as the "Added Componenf' and all of the foregoing Improvements constructed during the Term are sometim~ herein referred to as "Added Componentsu). The following provisions shall apply with respect to the approval of Submittals for any Added Components proposed by Lessee: ·

(a) Compatibility With Initial Project. To be approved by Lessor, any Added Component shall be compatible with the overall quality and character of the Initial Project and contemplate only a Permitted Use. Foilowing approval of any Preliminary Plans for any Added Component by Lessor, Lessee may submit Final Plans and Specifications and other materials required pursuant to and in accordance with the Submittal process set out in

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Preliminary Plans for which have been previously approved by Lessor but which requires a zoning change, or if Lessee, at its sole discretion, elects not to pursue the required approvals to permit it to construct any such Added Component, Lessee may again submit new Preliminary Plans to Lessor for approval and following approval thereof by Lessor, Final Plans and Specifications in accordance with the Submittal process set forth in Section 5.1 for a modified Added Component.

(b) Compliance With Construction-Related Requirements. Notwithstanding anything contained in this Section 5.2.3, Lessor's approval of and Lessee's right to construct any Added Component (regardless of whether it consists of additional uses consistent with the overall nature of the Initial Project or other uses approved by Lessor) will be subject to Lessee's complying with the applicable terms and provisions of Article 12 as provided therein.

(c) Structured Parking. In addition, Lessee acknowledges and understands that, although the current provisions of the Techny Overlay District provisions of the Zoning Code permit a density of development in excess of that contemplated in the proposed Final Plans and Specifications, construction ofadditional Gross Square Feetof Buildings in excess of those contemplated therein will likely require the construction of structured parking. Accordingly, any Submittal for any Added Component after Substantial Completion of the entire Initial Project shall include the specific location for any structured parking facility, if necessary, and a calculation as to the number of parking spaces lost and regained or added through the construction of such Added Component and related structured parking.

5.2.4 Lessor's Approval of Final Plans and Specifications for Added Components. Notwithstanding the provisions of Section 5.1, Lessor shall not unreasonably withhold or delay approval of Lessee's Final Plans and Specifications' for all Buildings and other' Improvements included in each Added Component to the extent they are in Lessor's reasonable judgment consistent with and the logical extension of the previously approved Preliminary Plans for such Improvements in all material respects and otherwise meet the requirements of this Lease, and if Lessee has not provided one of the other forms of security set forth in Section 5.3.I(b), Lessee has provided a Guarantor satisfactory to Lessor. Lessor shall provide Lessee with notice of approval or disapproval of any such Final Plans and Specifications or any proposed Guarantor within ten (I 0) Business Days of receipt thereof accompanied by, in the case of disapproval, Lessor's detailed explanation of the reasons therefor. Notwithstanding and fn addition to the foregoing (and any provisions of Section 5.1 above with respect to Lessor's approval of any Final Plans and Specifications), Lessor may withhold its consent in its sole and absolute discretion if any of the Final Plans and Specifications disclose any material change t() the nature, size or character or exterior appearance of Buildings or other Improvements from those contemplated by the Preliminary Plans previously approved by Lessor, or if any proposed Guarantor previously approved by Lessor no longer meets the applicable requirements for srich Guarantor set out in this Lease.

5.2.5 Planned Expansion. The portions of the Building contained in Lessee~s Final Plans and Specifications that will not be constructed as part of the Work which consists of the planned ground floor locker room and/or off-ice training room consisting of approximately

2,000 Gross Square Feet to be located at the rear of the Building between the compressor room (depicted in the proposed Final Plans and Specifications) and the southwestern-most edge of the. Building ("Planned Expansion') will not be considered an Added Component at the time itis constructed and will not result in an initial increase in the Adjusted Base Rent unless and until .• any other Added Components are constructed. The Planned Expansion will be considered ari . Added Component for purposes of determining Adjusted Base Rent when any additional Add~ . Component

or Added Components are constructed as set forth in Section 3.1.4. When· constructing the Planned Expansion, Lessee shall comply with the provisions of Section 12.1.1 • and the applicable provisions of Section 5.1. So long as Lessee's plans and purpose for the Planned Expansion are substantially the.same as described in this Section 5.2.5, the architecture for the Planned Expansion is consistent with that of the Initial Project, Lessee will continue to meet the 40% open space requirement applicable to the Techny Land after the addition of the Planned Expansion, and Lessee receives all necessary approvals and permits from the Village, • including an updated parking compliance letter that takes into account the additional number of people the Planned Expansion will accommodate, Lessor will approve Lessee's Submittals with• respect to the Planned Expansion. Notwithstanding the foregoing, if Lessor believes that there is . not sufficient on-site parking, or Lessee is otherwise in Default under this Lease, Lessor may withhold its consent to the Planned Expansion until Lessee provides evidence it has procured . · sufficient additional off-site parking as set forth in Section 6.1.1 and cures any and all Defaults; ·

5.3 The Work.

5.3.1 Commencement and Completion Requirements. The construction of the On-Site Improvements, Off-Site Improvements, Buildings, Public Improvements and ·other Improvements included in the Initial Project that are required to be constructed by Lessee in accordance with the Approved Plans for the Initial Project and all applicable Governmental Requirements (collectively, the "Work") shall be commenced and completed subject to the following conditions:

(a) Schedules for Construction. Attached hereto as Exhibit D is Lessee's' Preliminary Schedule for preparation of Preliminary Plans and Fin.al Plans and Specifications for the Initial Project and for the development and construction of the Initial Project ("Preliminary Schedule"). Lessee shall use all reasonable and diligent efforts to conform its preparation and development of Preliminary Plans and Final Plans. and Specifications and the Work to the Preliminary Schedule, as the same may from time to time be modified by any Approved Schedule, but shall not be permitted to commertc¢ construction of any Improvements without Lessor's approval of the required Fim\1 Pla.nS and Specifications for such Improvements and the Approved Schedule. In all eventS,' however, but subject to Unavoidable Delays, Lessee shall cause the Work (exclusive of any Tenant Finish Improvements not then required to be completed pursuant to any Tenant Lease) to be (x) commenced no later than the dates specified· on Exhibit D attached hereto or any subsequent Approved Schedule, (y) prosecuted on a reasonable schedule (taking into account market and other. relevant conditions), and (z) Substantially Completed (exclusive of any Tenant Finish Improvements) by the date specified jil Exhibit D attached hereto or any

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Added Component to commence construction thereof, and once Lessee · commences construction of such Added Component, Lessee shall cause such Added · Component to be Substantially Completed within the time period set out in a Preliminary • · Schedule that is included in the Submittals for approval by Lessor and as a result of being· .. approved by Lessor becomes the Approval Schedule for such Added Component, but such period of time shall be reasonable given the nature of such Added Component and : in all events shall require such Substantial Completion to occur within three (3) years of the date construction commences. . ·

(b) Security for Guaranty of Completion. Prior to commencement of the . Work, Lessee shall cause to be deposited with Lessor, a Proceeds Trustee, or Chicago. Title Insurance Company (or another title insurance company reasonably acceptable to· Lessor) under an agreement creating an escrow (referred to herein as an "Escrow Agreemenf') funds (a portion of which funds may be the proceeds from the issuance of: bonds pursuant to Bond Documents that require and include a First Leasehold Mortgage) in an amount equal to one hundred percent (100%) of the proceeds of the bonds issued· pursuant to the Bond Documents, plus any additional funds as required by the Bond . Documents to pay expenses associated with the issuance of the bonds and to fund · reserves or other separate funds required to be established under the Bond Documents, including amounts necessary to pay costs associated with the Initial Project incurred but • not paid by Lessee prior to the Commencement Date. Lessee shall, from time to time, as necessary~ replenish the amounts on deposit in each of the separate funds required to b~ . established under the Bond Documents so that all such separate funds contain the · amounts required under the Bond Documents and so that until the Initial Project is finally . completed the amount on deposit in the "Project' Fundn created under the Bond .. Documents shall be not less than one hundred percent (100%) of the then remaining· estimated cost of the Work (such estimated cost to be established by reference to the theri · remaining amounts due the Contractor or otherwise estimated hy an architect or engineer • selected by Lessee and reasonably satisfactory to Lessor under whose supervision th¢ .. Work is to be conducted) . Under the terms of the Escrow Agreement, Lessor (if it· succeeds to the rights of the Proceeds Trustee or Leasehold Mortgagee), the Proceeds· Trustee or title insurance company, as the case may be, shall from time to time pay out . sums to pay expenses associated with the issuance of the bonds, amounts for which any .. such separate funds were established, and to pay for the cost of the Work upon the . written request of Lessee and conditioned upon the title insurance company issuing an . endorsement to Lessor's owner's title insurance policy insuring Lessor against possible· mechanics' lien claims through the date of issuance thereof: which request shall b~ accompanied by: ·

(i) a certificate of the architect or engineer who supervises the Work? to the effect that {x) the portion of the Work for which payment is requested has • been

proved; under
ubcontractors,
sons; .. firms or
Work; • or that
e by Lessee iri

connection
with the
Work, and
(z) the
remaining

funds so deposited will be sufficient upon the completion of the Work to pay for the same in full;

(ii) sworn Lessee's and general contractor's statements setting forth all contractors, subcontractors, material suppliers and others with whom each has contracted, the amounts of the contracts, the amounts paid to date, and showirig the balance due at the time of any payment made pursuant to the Escrow Agreement; and

(iii) other evidence reasonably satisfactory to Lessor that there has not been filed with respect to the Premises or the Project any mechanics' or other lieri that has not been discharged of record in respect of any work, labor, services or materials performed, furnished or supplied, or claimed to have been performed, furnished or supplied, in connection with the Work.

Lessor, the Proceeds Trustee or the title insurance company, as the case may be, shall not be required to pay any amounts out of the funds held pursuant to the Escrow Agreement at any time when the Premises or Lessor's Estate shall be encumbered with any mechanics' or other lien not bonded or insured over to the satisfaction of Lessor. Upon submission of proof satisfactory to Lessor that the Work has been paid for and completed, the balance of the funds then held pursuant to the Escrow Agreement shall, except as otherwise provided in Section 13.3, be paid to Lessee. ·

(c) Construction Related Requirements; Lessor's Inspections and Approvals. Once actually commenced, all Work shall be performed and completed in :full: compliance with the provisions of Article 8, the applicable provisions of Section 12.Li and Section 12.1.2. The provisions of Section 12.4 with respect to Lessor's or Lessor's Beneficiary's right to inspect and approvals shall be equally applicable to each phase of the Work and to any inspections or approvals by Lessor, Les&or's Beneficiary or any of their respective representatives of the nature contemplated in Section 12.4, as if in all cases such provisions were made specifically applicable to the Work. ·

(d) Adjustments to Letters of Credit or Cash Deposits. In the event the Work · is not or cannot for any reason, be completed within thirty (30) months from the date such Work was commenced, if Lessee has provided a letter of credit or cash deposit, as the case may be, required by clauses (ii) or (iv) of Section 5.3.1(b) above, then at the end of such thirty· month period, Lessee shall adjust the amount of such letter of credit or cash to an amount equal to not less than one hundred ten percent (110%) ofthe then estimated cost to complete the Work.

(e) Substantial Completion Deliveries. Upon Substantial Completion of the Work, Lessee shall deliver to Lessor at Lessee's expense (1) a copy of the final certificate of occupancy for each Building that is a single occupant Building or a temporary certificate of occupancy for the core and shell of each Building that is a multi·tenant Building, in each case, issued by the applicable Governmental Authority (if such certificate is customarily issued by such Governmental Authority), (2) a copy of the "as built" or "record" set of Final Plans and Specifications for the On·Site Improvements,··

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Buildings and other Improvements, and (3} a date down endorsement to Lessor's existing owner's title insurance policy, increasing said policy by an amount equal to (x) $450,000 per acres .of land, plus (y) the total amount expended or incurred by Lessee in completing . such Building or Buildings, and insuring that there has not been filed, with respect to the . Premises or the Project or any part thereof, or upon the Lessee's or any Leasehold . Mortgagee's interest therein, any vendor's, mechanic's, laborer's, material supplier's or· other similar lien that has

not been discharged of record or insured over by the title insurance company in a manner reasonably satisfactory to Lessor. ·

5.3 .2 CSCG as Agent. Lessee shall engage CSCG as its project manager during · the construction of the Initial Project and to provide management services in connection with the operation of the Initial Project for at least three (3) years following Substantial Completion of the: Initial Project, unless Lessee demonstrates to Lessor that CSCG has defaulted in the performance of its duties under its agreement with Lessee, in which case Lessee will provide evidence to the satisfaction of the Lessor that it has engaged a replacement professional management service, service provider or employees experienced in managing similar facilities.

5.3.3 Contract Requirements. Upon Lessor's request, Lessee shall from time to. • time deliver to Lessor copies of all contracts entered into by Lessee in connection with the Work. In addition, any construction contracts, subcontracts, architectural agreements or other contracts for materials, labor or services rendered in connection with the Work shall provide that they may· be assigned to the First Leasehold Mortgagee and to Lessor (subject to the rights of the First. Leasehold Mortgagee) at the request of Lessor, and shall contain provisions to the effect that the Contractor, subcontractors, architect, or others rendering services in connection with the Work tO.' issue letters authorizing the use of any and all plans and specifications by Lessor or the First· Leasehold Mortgagee, any Guarantor or Guarantors under either Guaranty referred to in • · Section 5 .2.2, or any surety referred to in clause {i) of Section 5.3 .1 (b) above, as the case may be; in order to facilitate completion of the Work in the event any Event 6fDefault under this Lease shall occur and Lessor elects to terminate this Lease on account of such Event of Default. For' purposes of confirming such agreement with respect to Lessor, Lessee shall~ upon Lessor's. request, deliver letters substantially in the form attached hereto as Exhibit R from any such Contractor, subcontractors, architect, or others rendering services in connection with the Work., Notwithstanding the foregoing, Lessor shall not exercise any of its rights under this Section 5.3 .3. until all time periods afforded a First Leasehold Mortgagee under Article 25 have expired or · such First Leasehold Mortgagee has failed to exercise any of its other rights under said Article 25. in the manner provided therein. ·

5.4 Lessor's **Work Obligations.** Lessor is responsible for the installation for the ten'" foot wide bike path along Founders Drive within the bike path easement area generally depicted on Exhibit 0 {subject to modification by the Village), as well as the street trees and stre¢1 lighting, as applicable, required by the Village as part of the Founders Drive construction that are planned to be located within such easement or within the right-of-way of Founders Drive. Lessor will cause the maintenance and repair of the bike path easement area only for so long as it has any maintenance obligations under its easement or the Subdivision Agreement with the Village. To the extent that any of the foregoing work, and any related surveying required iil. connection with the Letter of Map Revision to the current flood plain map for Parcels EC-2 and other portions of the Techny Land for which Lessor will apply to the Federal Emergency

Management Agency (FEMA) upon completion of the construction of Founders Drive, has not yet been completed as of the Effective Date, Lessor reserves an easement for access to Parcel · EC-2C to conduct all such work in a manner that does not unreasonably interfere with the ·construction or operation of the Project or with any of the uses permitted under Section 6.1; After completion of the foregoing work by Lessor, Lessee shall be responsible for planting grass : or installing. sod within any remaining unpaved

areas on the Premises: Based on Lessor's · Beneficiary's prior experience with the Village review of plans for other projects on the Techny : Land, Lessor believes the area of the Premises that is encumbered by the bike path easement will· count toward part of the required 40% open space for Parcel EC-2C and will not withhold its· approval of the Final Plans and Specifications for the Initial Project or any Added Component or·. Redevelopment Plan based on any contrary interpretation.

5.5 Title to Buildings and Improvements. At all times during the Term of this Lease,. the Buildings· and all other Improvements comprising the Project (exclusive of water, sanitary: sewer or storm sewer trunk lines, mains and laterals and other Off-Site Improvements, On-Site . Improvements or Public Improvements to be dedicated to and accepted by any Governmental·· Authority, title to which shall remain in Lessor or Lessee, depending on which party constructs· them, but only until accepted by such Governmental Authority) shall, whether or not affixed to
the Land, but be the property of Lessee, subject always to the terms of this Lease. · Notwithstanding the foregoing, upon the Termination Date or the Expiration Date, whichever first occurs, .title to the Buildings and all other Improvements (including any On-Sit~ Improvements, Off-Site Improvements or Public Improvements constructed by Lessee at any· time during the Term and not previously dedicated to and accepted by any Governmental Authority) shall automatically vest in Lessor without any act or the recording of any instrument on the part of Lessor or Lessee or any Tenant

ARTICLE6

Use of Premises; Compliance with Requirements; Maintenance and Repair

6.1 Use of Premises. At all times during the Term of this Lease, the Premises shall be used by Lessee and any other occupant, including Tenants, solely as an ice skating rink and related locker rooms, pro shop, concessions (which shall not include the sale of liquor, except as hereinafter provided), off-ice and on-ice training and conditioning facilities and related offices, ancillary facilities and meeting rooms consistent with the provisions of the Techny Overlay District provisions of the Zoning Code, and for no other· purpose ("Permitted Use")~ Notwithstanding the foregoing, Lessor acknowledges that Lessee has requested the right to expand the Permitted Use to include, as an ancillary use only and not as a primary use, a liquor license that will permit Lessee or a Tenant of Lessee to serve beer only and then only for consumption on the Premises. As of the date of this Lease, Lessor has declined to permit such a use {and such a use is hereby expressly prohibited), but has agreed Lessee may seek approval from Lessor's Beneficiary to add such a use after the Initial Project has been Substantially Completed and open for operations for two calendar years. Upon receipt of such a request; which shall include information regarding the proposed hours during which beer may be served on the _Premises, the identity of the proposed holder of the liquor license, evidence of nature and limits of dram shop or other similar insurance the holder proposes to obtain, arid

information regarding how Lessee proposes to prevent access to beer from minors, Lessor shall either approve or disapprove the request. Lessor may disapprove such request if, in. Lessor's sole discretion, it has concerns regarding adequacy of parking, complaints arising out of the inadequacy of security at the Project, has received complaintS from neighboring residential property developments within the Techny Land, or otherwise has concerns regarding the

appropriateness of the proposed hours during which beer will be sold or other aspects of Lessee's proposal, which disapproval shall be final and not subject to review ot contest by Lessee. If Lessor does grant its approval for such request, Lessor shall have the right to revoke such approval if there are any violations of the liquor license issued by the Village or documented, bona fide complaints arise with respect to intoxicated patrons are found leaving from or present on the Premises.

6.1.1 Overflow Parking. If at any point during the Term of the Lease, the number of parking spaces becomes inadequate for the needs of Lessee, Lessee shall be responsible for entering into arrangements at its sole cost and expense that will provide for additional off-site parking as needed.

6.1.2 Security. If at any point during the Term of the Lease Lessor determines, at its sole discretion, that there is a need for security at any of the functions held at the Project, including but not limited to, evidence of police calls to the Project, Lessee shall provide evidence to Lessor that it has engaged off duty police officers or security guards to be present during games or other activities that are the source for the calls. ·

6.2 No Violation of Applicable Law; Church Requirements. Lessee acknowledg~s that because Lessor intends directly or indirectly to retain the fee interest in the Land, and l:;y reason of th~ provisions prohibiting certain uses contained in the Five Sea8ons Ground Lease, Lessor has legitimate concerns about the uses to which the Land and development thereon will be put. Accordingly:

6.2.1 Prohibited Activities. Lessee shall not make or permit any use of the Premises that (i) violates any applicable Governmental Requirements (including, without limitation, any applicable provisions of the Annexation Agreement) of each and every Governmental Authority, (ii) constitutes a nuisance, public or private, or (iii) may render void or voidable any hisurance then in force pursuant to the provisions of this Lease or (iv) violate the prohibitions· contained in the Five Seasons Ground Lease as set forth in Section 3.6.3 (collectively, the "Prohibited Uses"). Lessee shall, at Lessee's sole cost and expense, procure any and all necessary permits, licenses, or other authorizations from time to time required by ~y
Goverrimental Authority for the lawful conduct of its business Oil the Premises. To the extent reasonably necessary or required, Lessor agrees to cooperate with Lessee in obtaining such permits, licenses, or other authorizations.

6.2.2 Restrictions on Names. Lessee shall not use or permit to be used.the name "Society of the Divine Word", "Divine Word Techny Community", '1'echny" or any words or phrases similar thereto or suggesting any religious affiliation or other affiliation with Lessor without Lessor's prior written consent, which consent may be withheld for any reason whatsoever (whether or not arbitrary) or no reason whatsoever. In addition, if at any time Lessee subleases aU or any portion of the Premises or the Project to any third parties pursuant to a

Tenant Lease, Lessee shall, as required pursuant to clause (ii) of Section 9.2.1(h) of this Lease,. include a covenant in each Tenant Lease that prohibits the Tenant and any successor, assignee, sublessee or any other person occupying the premises by, through or under such Tenant fro:rn , using the name "Techny" or "Society of the Divine Word" or "Divine Word Techny Community", "Technyt' or any words or phrases similar thereto or suggesting any religious or. other affiliation

with Lessor (except in connection with Lessee's street address) without Lessor's · prior written consent.

6.2.3 CBIS Principles. Lessor acknowledges that Lessee shall not be deemed .· responsible for the acts of any third-party users of the Buildings that are beyond Lessee's. reasonable control. However, Lessee agrees that in conducting its business and as a landlord .or. sublessor to any Tenants, Lessee shall (to the extent within its control) use all reasonable, good·· faith efforts (i) not to cause, suffer or permit the Premises to be developed or used in such a way · as to cause public scandal to Lessor or to the Roman Catholic Church, and (ii) to comply with the statement of the Christian Brothers Investment Services, Inc. regarding a commitment to socially responsible investing ("CBIS Principles") as from time to time in effect. Lessee·. acknowledges t4at the CBIS Principles are drawn "from the social teachings of the Judeo~ Christian Tradition" and are intended to "promote and demonstrate the dignity and quality of human life," while at the same time they are "dedicated to the promotion of responsible stewardship of financial resources." To that end, Lessee shall not enter into Tenant Leases or other contractual arrangements affecting the Premises with any third parties whose business, practices and policies at the time of entering into such lease or other contractual arrangement are,~ in the absolute judgment of Lessor, offensive to or violate the CBIS Principles. In connection: therewith, Lessor and Lessee shall consult with each other upon request from time to tiine concerning the status and applicability of the CBIS Principles to any specific transaction,. situation or matter in connection with the Premises and Lessor will at all times have a member ot members ofthe Society of the Divine Word designated from time to time who will be available· to consult with Lessee with respect thereto. Notwithstanding the foregoing or anything else contained in this Lease to the contrary, Lessee's failure, or alleged failure, to comply with th~ CBIS Principles or with the provisions of clause (i) of this Section 6.2.3 in connection with this Lease or any Tenant Lease shall not be grounds for termination of this Lease by Lessor or for the imposition of any damages or penalties, and shall not give rise to any right to injunctive or oth~ relief on the part of Lessor. ·

6.3 Lessee's Covenant Not to Compete; Lessor's Agreements.

6.3.1 Radius Restrictions. For as long as the Project is used for the purposes set forth in Section 6.1 ,-neither Lessee, nor any Guarantor under the Guaranty, nor any of Lessee~s; members or the respective Affiliates of any of them shall engage, directly or indirectly, in the development, ownership, operation, or management of any other business similar in nature to ari: ice skating rink similar to the Lessee's operations within a radius of five (5) miles of the TechnY Land, whether such development, ownership, operation, management or other project is direct or indirect, through one or more entities, contractual relationships or familial relationships, and whether such development, ownership, operation, management or project acts as owner, principal, agent, partner, shareholder, officer, director, member, trustee, beneficiary, employer, employee, consultant, manager, lessor, lessee, or otherwise. Nothing in this Section 6.3.1 shall preclude Lessee, any Guarantor, nor any of Lessee's members or their respective Affiliates from)

continuing to lease ice time from the existing ice rinks in Winnetka, Wilmette, Glencoe and any other suburbs within five (5) miles of the Project. For as long as the Project is used by Lessee or · Permitted Assignees for an ice skating rink as set forth in Section 6.1. neither Lessor nor Lessor's Beneficiary shall engage, directly or indirectly, in the development, ownership, operation, or management of, or permit any lessee of any portion of the Techny Land to develop. any other ice

·skating rink on the Techny Land. Notwithstanding the foregoing, Lessee acknowledges and understands that there are other ground leases previou~ly executed by Lessor that do not contain a prohibition on a use of their Premises as an ice skating rink, and the underlying zoning or such ground lease, or both, my either permit or not prevent the lessee front developing such a facility on the premises leased· thereunder. If any such lessee proposes to develop such a facility, and Lessor has the right pursuant to the applicable ground lease to• withhold its consent to such a facility, Lessor shall do so, but shall not be liable or responsible for a breach of the preceding provisions of this Section 6.1, on account of the actions by another lessee under a ground lease that is in existence as of the date of this Lease.

6.3.2 Reasonableness. Lessee, for itself and its members, and each of the Guarantors under the Guaranty or Guarantees of any portion of the Project, by executing and delivering such Guaranty or Guarantees, acknowledges and agrees, and both Lessee and each Guarantor of any portion of the Project, by executing and delivering such Guaranty, for their respective Affiliates, acknowledge and agree, that the covenants set forth in Section 6.3.1 are reasonable and valid in duration and geographical scope and in all other respects. If any court determines that . any covenant set forth in Section 6.3.1 above, or any portion of any s-Uch. covenant, is invalid or unenforceable, the remainder of the covenants set forth in Section 6.3.1· above shall not be affected and shall be given full force and effect, without regard to the invaiid · covenant or the invalid portion. If any court determines that any covenant set forth in· Section 6.3 .I above, or any portion of any such covenant, is unenforceable because of itS duration or geographic scope, such court shall have the power to reduce such duration or scope, as the case may be, and to enforce such covenant or portion in such re~uced form.

6.3 .3 Remedies for Breach. Lessee, for itself and its members, and each of the. Guarantors under the Guaranty or Guarantees of any portion of the Project, by executing and • delivering such Guaranty, recognizes, and both Lessee and each Guarantor under such Guara.Qty. or Guarantees of any portion of the Project, for their respective Affiliates, recognize that • irreparable harm will result to the Society of the Divine Word and its Affiliates in the event of, the violation of any of the covenants contained in Section 6.3.1 above, and agrees that in the. event of any such violation, Lessor and Lessor~s Beneficiary shall be entitled, in addition to their· other legal and equitable remedies and damages, to temporary and permanent injunctive reliefto . restrain Lessee and its Affiliates from committing any such violations. Lessee, for itself and itS members,· and each Guarantor under the Guaranty or Guarantees of any portion of the Project, by · executing and delivering such Guaranty, acknowledges and agrees, and both Lessee and the· Guarantors under the Guaranty or Guarantees, for- their respective Affiliates, acknowledge and agree, that any remedy at law for a breach or threatened breach of any of the covenants set forth in Section 6.3.1 above would be inadequate.

6.4 Conformity with Legal Requirements.

6.4.1

Lessee's Obligations. In all events, ordinary and extraordinary, whether or not foreseen or foreseeable as of the date of this Lease, Lessee shall keep or cause to be kept the Premises, the Project and the Environs (to the extent that the owner or occupant of the Premises may be legally responsible for the condition of the Environs) in a condition conforming to (i) ail applicable Governmental Requirements, (ii) the requirements and regulations of the Insurance Service Organization, or any other body exercising similar functions, and (iii) the requirement~ of all policies of insurance maintained in force by Lessee or Lessor on or with respect to the Premises or the Project, pursuant to the provisions of this Lease; provided, however, nothing contained in this sentence shall require Lessee to undertake any Remediation of any Environmental Event if such Environmental Event is a Pre-Existing Environmental Condition, in which case the applicable provisions of Article 15 shall apply. Prior to the date of this Lease, Lessor has received a determination letter from the U.S. Army Corps of Engineers to the effect that no part of the Premises is considered to be "adjacent wetlands" that are subject to the jurisdiction of the U.S. Army Corps of Engineers as presently defined under the U.S. Army Corps of Engineers applicable regulations or orders, and, in reliance on such determination, the parties hereto anticipate Lessee shall not be required to incur any costs associated with wetlands mitigation or compliance costs. Notwithstanding the foregoing, should the U.S. Army Corps of Engineers or any other Governmental Authority determine that after the date of this Lease that any part of the Premises consist of wetlands subject to such Governmental Authority's jurisdiction, then Lessee shall be responsible for all associated wetlands mitigation • *ot* compliance costs.

6.4.2 Right to Contest. Notwithstanding the foregoing, Lessee shall have the: right to contest by appropriate legal proceedings the order or directive of any Governmental Authority requiring compliance with any Governmental Requirements provided Lessee shall at" all times while such proceedings are pending keep on deposit with Lessor, or such person or corporation as Lessor may direct or approve in writing (including a First Leasehold Mortgagee, if such Leasehold Mortgagee requires such deposit be held by it) or as may be provided by law, •

as security for the payment of all costs and expenses related to any alleged violation ·of Governmental Requirements, a sum of money, a surety bond issued by an insurance company acceptable to LeSsor or such other security as may be reasonably required by Lessor, in any such case in an amount equal to one hundred ten percent (110%) ofthe cost, reasonably estimated by Lessor, that may be required to comply with all Governmental Requirements that Lessee seeks to challenge.

6.5 Operation, Maintenance and Repair of Premises. Lessee shall keep or cause to be • kept the Premises (including the Land and the Project) in a reasonably clean and orderly condition, and reasonably free of accumulations of rubbish and unlawful obstructions. Lessee shaH keep or cause to be kept all walkways, bike paths (other than the bike path installed by' Lessor and owned and maintained by the Village, unless required to do so by applicable Governmental Requirements), driveways and parking areas reasonably free of accumulations of snow and ice. Lessee shall also keep or cause to be kept the Project in good order and condition, and to that end shall make or cause to be made all repairs to the Project, interior and exterior, structural and non-structural, extraordinary as well as ordinary, foreseen as well as unforeseen, that are reasonably necessary or advisable in accordance with good standards of operation and ·

maintenance applied by owners of properties comparable in class, age and quality to the Projeet that are located in the Chicago metropolitan area. For purposes of this Section 6.5, repairs shall include all replacements, renewals, alterations, additions and betterments necessary to maintain the good appearance and to prevent any physical deterioration of the Premises (including the Land) or the Project ~eyond ordinary wear and tear, including, without limitation, all repairs to the roof and exterior

surfaces of the Buildings necessary to keep the Buildings free from leakage of rain or wind that might adversely affect the structural integrity of the Buildings or cause damage to the interior thereof. All repairs shall be at least equal in quality and class to the w()rk ·

and materials then in customary usage in premises comparable in class, age and use to the Premises (including the Land) and the Project. ·

6.6 Utilities and Services. Lessee agrees to pay or cause to be paid all charges for gas, electricity, light, heat, power, telephone and other utilities and services used, rendered or= supplied upon or in connection with the Premises and Improvements throughout the Term of this Lease, and to indemnify Lessor and save Lessor and Lessor's Beneficiary harmless against any Claims on account of Lessee's failure to do so. Lessee shall also at its sole cost and expense procure any and all necessary permits, licenses or other authorizations required for the lawful and proper installation and maintenance upon the Premises and Improvements of wires, pipes, conduits, tubes and other equipment and appliances for use in supplying any such service or utility to the Premises and Improvements or to any Tenant in and upon the Premises and Improvements and shall indemnifY Lessor and save Lessor and Lessor's Beneficiary harmless against any Claims on account of Lessee's failure to do so.

6.7 Covenant Against Waste. Lessee covenants, subject to the terms of this Lease, nof willfully to do or willfully to suffer any waste or unrepaired damage to, or otherwise to do or to.: suffer or permit to be done any act that would substantially impair the value of, the Premises, the Buildings, the-o~er Improvements or any part thereof.

6.8 Compliance With Executive Order.

6.8.1 Requirements; Lessee's Representations and Warranties. Lessee acknowledges and agrees that Lessee, and all beneficial owners, managers, executive officers and directors of Lessee, must be in compliance with all applicable Governmental Requirements. applicable to such Persons, including, without limitation, the requirements of Executive Order ·. No. 13224, 66 Fed. Reg. 49079 (Sept. 25, 2001) (the "Order") and other similar requirementS .. contained in the rules and regulations of the Office of Foreign Asset Control, Department of the' Treasury ("OFAC") and in any enabling legislation enacted or other Executive Orders issued with respect thereto or with respect to the subject matter of the Order (the Order and such other • rules, regulations, legislation, or orders are collectively called the "Orders"). To assure Lessor that, as of the Effective Date, Lessee is in compliance with the Orders, Lessee represents and warrants that neither Lessee nor any of the beneficial owners, managers, executive officers or . directors of Lessee:

{i) is listed on the Specially Designated Nationals and Blocked . Persons List maintained by OF AC pursuant to the Order or on any other list of terrorists • or terrorist organizations maintained pursuant to any of the rules and regulations of •

OF AC or pursuant to any other applicable Orders (such lists are collectively referred to as the "Lists");

(ii) has been indicted or arrested for money laundering or for predicate crimes to money laundering, convicted or pled *nolo contendere* to charges involving : money laundering or predicate crimes to money laundering; ·

(iii) has been determined by competent authority to be subject to the prohibitions contained in the Orders;

(iv) is owned or controlled by, nor acts for or on behalf of, any Person on any of the Lists or any other Person who has been determined by competent authority to be subject to the prohibitions contained in the Orders;

(v) has transferred or permitted the transfer of any interest in Lessee or any of Lessee's members or managers to any Person who is, or whose beneficial owners are, listed on any of the Lists; or

(vi) has assigned the Lease or any interest in the Lease, or assigned, conveyed, transferred or subleased any interest in the Premises or the Project, to any Person who is listed on any of the Lists or who is engaged in illegal activities prohibited by the Orders.

6.8.2 Prohibitions on Transfers or Events in Violation of Requirements. In addition, during the Term of the Lease, Lessee shall not (x) transfer or permit the transfer of any interest in Lessee or in any of Lessee,s beneficial owners or managers to any Person who is, or whose beneficial owners are, listed on any of the Lists; or (y) assign the Lease or any interest irt the Lease, or assign, convey, transfer or sublease any interest in the ~remises or the Project, to, any Person who is listed on any of the Lists or who is engaged in illegal activities prohibited by • the Orders. Further, if Lessee or any of the beneficial owners, managers, executive officers or : directors of Lessee (1) become listed on any of the Lists, (2) are indicted, arraigned, or detained in custody on charges involving money laundering or predicate crimes to money laundering: convicted or plead *nolo contendere* to charges involving money laundering or predicate crimes to.: money laundering, (3) are determined by competent authority to be subject to the prohibitions contained in the Orders, or (4) become owned or controlled by, or act for or on behalf of, any Person on any of the Lists or any other Person who has been determined by competent authority to be

Triggering Event"), Lessee shall

Business Days after the, occurrence of

ss Days following the date of the

n :from any interest in and manager,

e to do so within such ten (1 0)

ARTICLE7

Insurance

7.1 ProDertv Insurance. At all times during the Term of this Lease (including any period or periods of time during the course ofthe Work or of any work in connection with any construction of or any Change or Alteration to any Buildings or other Improvements) Lessee' shall maintain or cause to be maintained such of the following types and amounts of insurance as. are required herein:

7 .1.1 Permanent Property Insurance. Property insurance covering all . Substantially Completed Buildings and all other Improvements on a replacement cost basis for . . the Full Insurable Value thereof under a form of policy including converges at least equivalent to·· the Insurance Service Organization's so~called "special causes of loss" property damage policy as in effect as of the date of this Lease (or such standard fonn containing at a minimum similar coverages as shall be issued from time to time by the Insurance Service Organization or any successor. organization, or an entity similar in function and purpose to the Insurance Service . Organization if no successor organization exists) against the following: (i) all risk of physical loss, including, but not limited to, loss or damage caused by pollution (provided that such· coverage is not then being carried by Lessee's Contractor, as provided in Section 7.6), fire, · lightning, windstorm, hail, smoke, explosion, riot, riot attending a strike or civil commotion, · aircraft and vehicles, vandalism and malicious mischief, sprinkler leakage, collapse or earthquake to the extent coverage for such risks is from time to time customarily available at .) commercially reasonable rates in the commercial property insurance market for buildings similar • to the Building or Buildings in an amount equal to not less than 100% ofthe Full Insurable Value • of the Building or Buildings and other Improvements with deductibles or self-insured retentions .. of a not more than one-half of one percent (Yl of 1%) of such Full Insurable Value, (ii) loss' caused by business interruption and/or loss in rental value, and (iii) war risks, if reasonably .. required by Lessor and a state of war or public emergency exists (provided such insurance is · obtainable through any governmental agency or instrumentality of the United States • Government), in an amount equal to the lesser of (A) the maximum amount available through · such government-al agency or instrumentality, or (B) an amount equal to one hundred percent. (1 00%) of the Full Insurable Value of the Building or Buildings and other Improvements.

7.1.2 Builder's Risk Insurance During Construction. Builder's risk broad forni • insurance coverage in such form or forms of policies as may be from time to time customarily .. maintained for similar properties in the vicinity of the Premises covering the Full Insurable . . Value of all Work or Changes and Alterations, Added Components or work in connection with a .. Redevelopment Plan being conducted on the Premises, as the case may be, including materiai · and equipment incorporated therein on the Premises (but only during the time that the Work or· any work in connection with any construction or any Change or Alteration, Added Component or Redevelopment Plan is in progress on the Premises and until Substantial Completion and final acceptance there~f). unless the same coverage is included within Lessee's insurance in force . pursuant to Section 7.1.1.

7.1.3 Boiler and Machinery Insurance. Boiler and machinery insurance with respect to all equipment and objects (which are part of the Buildings) customarily covered by

such insurance ·in an amount equal to their replacement cost with property damage and personal injury coverages in such amounts as Lessor shall reasonably require.

7.1.4 Insurance Carrier Requirements. The insurance to be maintained by Lessee pursuant to Section 7 .1.1 shall name those persons identified and in the manner provided for in

Section 7.5 below, and shall also include (i) a so-caUed ~"increased cost of construction" · endorsement covering costs that may be incurred in connection with elements of rebuilding or reconstruction following a casualty required to comply with changes to building codes and other Governmental Requirements, (ii) a so-called "demolition cost" endorsement covering costs of demolishing lll!damaged portions of any Building if required by applicable Governmental Requirements in order to repair damage to other portions of any Building or other Improvements resulting from a Casualty, and (iii) a so-called "cost of clearing" endorsement covering cost of clearing debris and returning the Land to grade in the event the Building and other Improvements are not rebuilt after the occurrence of any Casualty. All insurance required under this Section 7.1. shall be issued by a carrier reasonable satisfactory to Lessor that is admitted in Dlinois and has received, during the current year, a rating of "good to superior financial security" according to one or more of the major rating bureaus (such as A.M. Best, Standard & Poor's or Moody's) and, in the case of an A.M. Best Rating, a size category of at least VII or similar size rating from any successor to A.M. Best.

7.2 Liabilitv and Other Insurance. At all times during the Term of this Lease, Lessee shall maintain, at Lessee's sole cost and expense, but for the purpose of affording insurance· coverage to Lessor, Lessor's Beneficiary, Lessee and such other Persons as required pursuantto Section 7.5 below, the following kinds and amounts ofinsurance:

7 .2.1 Commercial General Liability Insurance. Commercial general liability • insurance providing coverage equivalent to that provided under a standard ISO CG 00 01 02 04. form (or such other standard form containing similar coverages as shall be issued from time to·· time by the Insurance Service Organization or any successor organization, or an entity similar in . function and purpose to the Insurance Service Organization if no successor organization exists), including but not limited to, a broad form endorsement providing insurance against claims for · bodily injury (including death), property damage occurring upon or in the Premises, the .. Buildings or the other Improvements and contractual liability (including an endorsement, if not otherwise covered by the applicable policy language, to effect an acknowledgment that this : Lease is an "insured contract" under such policy), and having limits of liability not more than the .. limits that are customary and reasonable for similar buildings and uses in the Chicago .. metropolitan area as reasonably determined from time to time by Lessor and required by notice from Lessor to Lessee, but in no event less than $1,000,000 as the combined single limit per ·. occurrence.

7.2.2 Worker's Compensation Insurance. Worker's compensation insurance in an amount not less than the required statutory limits and including employer's liability insurance, with limits of not ·less than $500,000 per occurrence.

7.2.3 Automobile Liability Insurance. Comprehensive automobile liability insurance covering owned automobiles, automobiles under long-term lease, hired automobiles, employer's non-ownership liability, medical payments and uninsured and underinsured motorist

coverage for limits not more than limits that are customary and reasonable for ownerS of similar . buildings with similar uses in the Chicago metropolitan area as reasonably determined from time to time by Lessor and specified by notice from Lessor to Lessee, but in no event less than : $500,000 (with a special limit of $5,000 with respect to medical payments) as the combined single limit per occurrence. ·

7 .2.4 Special Endorsements or Policies. After Substantial Completion of any. portion of the Project, including any work in connection with any Changes and Alterations, any . Added Component or any Redevelopment Plan, separate policies, endorsements or riders • covering liability for any special coverages required due to nature of any of the Permitted Uses. • then being conducted by Lessee or Tenant, such as: communicable diseases, swimming pool and · health club operations, liquor liability, employment practices liability, false imprisonment, false.· arrest, discrimination, terrorism, loss of revenue due to a non-physical event, .and such other coverages as are customarily or prudently obtained by operators of facilities similar to .those · constructed which are then being operated.

7 .. 2.5 Hockey Team Insurance. For as long as the Project is used as an ice rink, . Lessee must ensure that all organized hockey teams or clubs that use the facility in any capacity, · including but not limited to practices, games, and tournaments, carry appropriate insurance. issued by USA Hockey or a comparable organization.

7.2.6 Dram Shop Insurance. If at any time the Permitted Uses for the Project includes serving alcoholic beverages, Lessee shall carry (or shall require the Tenant or oth.er concessionaire serving alcoholic beverages to carry) appropriate dram shop or equivalent liqum·

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liability insurance with limits and types approved by Lessor as and when permission is given to. include such ·use in the Permitted Use pursuant to Section 6.1. ·

7.2.7 Director's and Officer's Insurance. Director's and ()fficer's liability insurance covering Lessee's directors and officers (or the employees, directors and officers of any corporate or other entity or Persons constituting the manager, if Lessee is a limited liability company), or if Lessee is a partnership, either general partners liability/limited partnership reimbursement or partnership managers lhlbility/general partnership reimbursement insurance,: as: applicable, in such amounts and with such deductibles and coverages as may be required by Lessor. ·

7.2.8 Umbrella Liability Insurance. Umbrella liability insurance providing excess coverage on a so-called "following form" basis above the limits of the insurance required to be provided in Sections 7.2.1, 7.2.2, 7.2.3 and 7.2.4 and having limits of liability of not less. than $10,000,000.

The foregoing policies of insurance that are required to name Lessor and Lessor's and Lessor's Beneficiary's Protected Persons shall specifically provide (or be so endorsed, if necessary, to provide) they are primary with respect to Lessor and Lessor's and Lessor's Beneficiary;s Protected Persons, but only with respect to any claim arising solely out of activities or occurrences relating to the Premises.

7.3 Professional Liability Insurance. Lessee shall obtain (to the extent it is a design/builder of any portion of the Buildings, Improvements or Work) or shall cause, except with respect to Tenant Finish Improvements,· any third-party contractor or Affiliate of Lessee with which Lessee contracts as a design/builder or any third-party design professional *(e;g.,* architect, engineer or

other similar professional) with which Lessee or any Affiliate of Lessee contracts to design all or any portion of the Building or Buildings, other Improvements or Work to carry professional liability insurance during the entire time such contract is in effect and, if such professional liability insurance is carried on a claims made basis, such policy shall be' renewed on an annual basis for a period of not less than ten (1 0) years following the Substantial Completion Date of the Initial Project or the date of Substantial Completion of any work. .
commenced at any time thereafter, whether in connection with the construction of an Added Component, any Changes or Alterations or any Redevelopment Plan. Such insurance will be for such amounts and coverages as shall be reasonable and customary for similar professionals engaged in similar activities in the Chicago metropolitan area.

7.4 Approval and Evidence of Insurance. All insurat1ce required to be maintained pursuant to this Article 7 shall be secured from insurers licensed by the Insurance Department of the State of Tilinois (or its successor agency) (i.e., a so-called "admitted" carrier) (other than umbrella liability coverage under Section 7.2.6, which may be procured from a non-admitted insurer) and reasonably acceptable to Lessor. Upon the execution of this Lease and thereafter · not less than thirty (30) Days prior to the expiration dates of the expiring insurance policies theretofore furnished pursuant to this Article 7, Lessee shall deliver to Lessor (or another Persbn designated from· time to time by Lessor) originals of the renewal endorsements or replacement' policies, or true and correct copies thereof certified by the respective insurers, or other evidence. of continuation of insurance, together with evidence of the payment of the applicable premiums . for the insurance required hereunder, which shall be stamped upon the endorsements, policies or. the copies delivered to Lessor, or otherwise evidenced to the reasonable satisfaction of Lessor.· In the event actual endorsements or policies are not available at such time, Lessee shall deliver binders or certificates upon which Lessor can legally rely evidencing, such insurance within the· time periods specified and shall deliver the endorsement or policies required as soon a$ practicable thereafter.

7.5 Named Insureds; Additional Insureds. All policies of insurance required to be: maintained pursuant to Section 7.1 shall name Lessee, Lessor and Lessor's Beneficiary as named_ insureds, as their interests may appear. In addition, the insurance required to be maintained_ pursuant to Section 7.1 shall also name, as a mortgagee, any Leasehold Mortgagee and, if Lessor .. so requests, any Fee Mortgagee. All policies of insurance required to be maintained pursuant to. Section 7.2.1 and Section 7.2.6: (i) shall name Lessor, Lessor's Beneficiary and Lessor's and· Lessor's Beneficiary's Protected Persons as additional insureds, (ii) shall provide that any loss, shall be payable as therein provided notwithstanding any act or negligence of Lessor, Lessor's Beneficiary, Lessee or any Tenant or other occupant of the Premises, the Buildings or other· Improvements, which might otherwise result in a forfeiture of said insurance, and (iii) shall expressly provide that the insurance coverage is primary coverage for the benefit of Lessor,· Lessor's Beneficiary and Lessor's and Lessor's Beneficiary's Protected Persons, and that the·. insurer sha11 not seek contribution from any insurance or self-insurance program that provides_. · coverage for Lessor, Lessor's Beneficiary or Lessor's Beneficiary's Protected Persons as named· insureds. Lessor _shall, from time to time upon the request of Lessee, provide Lessee with the,

specific names of such of Lessor's and Lessor's Beneficiary's Protected Persons as Lessor wishes to have separately named as named insureds or additional insureds in any policies: required pursuant to Section 7.1 or Section 7.2.

7.6 **Insurance During Construction.**

7 .6.1 Types of Policies and Coverages. Lessee shall cause its Contractor for the.· Initial Project and any other Contractor engaged in performing any portion of the Work that is either **(1)** considered high risk, (2) constitutes a Major Change, or (3) involves the construction. of any new Buildings or other Improvements as an Added Component or pursuant to an.· approved Redevelopment Plan, in all such cases, to maintain contractor's poliution liabilitY insurance having limits of liability not more than the limits that are customary and reasonable for·. the Chicago metropolitan area as reasonably determined from time to time by Lessor and required by notice from Lessor to Lessee, but in no event less than $1,000,000 as the combin:ed single limit per .occurrence. Lessee shall cause all contractors and subcontractors at any time,· engaged in the performance of any work on the Premises to maintain (x) worker's compensation: insurance in an amount not less than the required statutory limits and including employer's liability insurance with limits of not less than $500,000 per occurrence; and (y) all other insurance customary for similar types of construction contracts (including commercial genera:}.· liability insurance providing coverage equivalent to that provided under a standard ISO commercial general liability form available to contractors engaged in the business ·of constructing of projects similar to the Project or other types of industrial buildings that provides coverage to the additional insureds under such policy, or such other standard form containing similar coverages to such ISO form as shall be issued from time to time by the Insurance Service' Organization or any successor organization, or an entity similar in function and purpose to the Insurance Service Organization ifno successor organization exists), to cover bodily injury and: property damage sustained by all potential claimants, including (but not limited to) all persons. employed in connection with the work with respect to whom death' or injury claims could be asserted against Lessor, Lessor's Beneficiary, Lessee or the Premises with limits of liability npt: more than the limits that are customary and reasonable for similar projects in the Chicago· metropolitan area where the Contractor or subcontractor is performing a similar type ofwork,:as reasonably determined from time to time by Lessor (but in no event less than $1,000,000 as the, combined single limit per occurrence in the case of commercial general liability insurance· unless, in the case of a subcontractor or a contractor performing work in connection with Tenant. Finish Improvements, Lessor determines, promptly following a written request by Lessee tha;t includes the proposed lesser limits and a description of the nature of the work to be performed, · that the size or nature of the subcontractor's work permits a lesser combined single limit per: occurrence).

7 .6.2 General Requirements. All insurance carried as provided in Section 7.6:1:. ·. (i) shall be issued by a company or companies authorized to do business in the State ofIllinois• and satisfactory to Lessor; (ii) shall name Lessor, Lessor's Beneficiary and Lessor's. Beneficiary's Protected Persons as additional insureds (except for worker's compensation and employer's liability insurance); (iii) shall provide that any loss shall be payable as therein provided notwithstanding any act or negligence of Lessor, Lessor's Beneficiary, Lessee or any Tenant or other occupant of the Premises or the Building which might otherwise result in a • . forfeiture of said insurance; and (iv) shall expressly provide that the insurance is primary

coverage for the benefit of Lessor, Lessor's Beneficiary, and Lessor's and Lessor's Beneficiary's Protected Persons and that the insurer shall not seek contribution from any insurance or self- · insurance program that provides coverage for Lessor, Lessor's Beneficiary, or Lessor's • Beneficiary's Protected Persons as named insureds. If requested by Lessor, true and correct copies of such policies, certified by the respective insurer, or other reasonable evidence that the · required

insurance coverages are in place, shall be delivered to Lessor, together with evidence of • payment of the premiums reasonably satisfactory to Lessor. Lessor shaH, from time to time upon the request of Lessee, provide Lessee with the specific names of such of Lessor, Lessor's Beneficiary and ·Lessor's Beneficiary's Protected Persons as Lessor wishes· to have separately · named as additional insureds in any policies required pursuant to this Section 7 .6.

7.7 Notice of Cancellation. All policies of insurance required to be maintained pursuant. to this Article 7 shall, to the extent obtainable, contain an agreement by the insurers that neither. the policies nor any particular coverage thereof shall be canceled or not renewed without at least thirty (30) Days' prior written notice to Lessor. Notwithstanding the foregoing, only ten (10) Days' notice shall be required with respect to cancellation or non-renewal due to non-payment of premiums.

7.8 Adjustment of Losses; Use of Proceeds. The loss, if any, under any insurance. required to be maintained pursuant to Section 7.1 with respect to all Lessee-owned Buildings or other Improvements shall be adjusted and agreed to with the insurers (a) by Lessee and, if.· required under any Leasehold Mortgage, by the First Leasehold Mortgagee, if the then. outstanding indebtedness owed to the Leasehold Mortgagee equals ·or exceeds twenty-five. · percent (25%) of the Full Insurable Value of the Building or Buildings damaged, or (b) by· Lessor, Lessee, the First Fee Mortgagee (if any) and the First Leasehold Mortgagee, if the theri outstanding indebtedness secured by a Leasehold Mortgage is less than twenty-five percent· (25%) of the Full Insurable Value of the Building or Buildings. In the case of any loss not. exceeding ten percent (10%) of the Full Insurable Value of the Buildjng or Buildings or other · Improvements damaged, the proceeds of any applicable insurance, after the loss is so adjusted~ shall be used in the Restoration of the portion of the Project so damaged in the manner required · under Section 11.1, but may, if permitted by the First Leasehold Mortgagee, be paid directly to Lessee in order that Lessee may use such proceeds to effect Restoration of the portion of the Project so damaged in the manner required under Section 11.1. In all other cases the proceeds of any applicable insurance, after the loss is so adjusted, shall be (i) paid to or at the direction of the · First Leasehold Mortgagee (but without changing or altering any obligation Lessee may have to . rebuild or restore pursuant to Article 11 of this Lease), or (ii) if there is no such First Leasehold.· Mortgagee· and if Restoration is required under Article 11, paid to a Proceeds Trustee for use in . restoring the Premises, or (iii) if there is no such First Leasehold Mortgage and if Restoration is not required pursuant to Article 11, applied as provided in Section 11.5.2, or (iv) only if the . Restoration is of Tenant Finish Improvements owned by a Tenant subleasing a space or portion of a Building or Buildings and is to be performed by Tenant, and at the time of the Casualty such Tenant meets the-requirements for a Guaranty set out in Section 5.2.2 with respect to the Initial Project, and such Tenant has agreed either in its Tenant Lease or in a separate document following the Casualty to perform the Restoration of its Tenant Finish Improvements using the · proceeds of any applicable insurance, paid to such Tenant. In any case, the proceeds shall be · deemed to be held in trust by Lessee, the First Leasehold Mortgagee or the Proceeds Trustee, as the case may be, to be applied or used in accordance with the provisions of Article 11.

7.9 Waiver of Subrogation. Whenever (a) any loss, cost, damage or expense resulting from any Casualty is incurred by either of the parties to this Lease or anyone claiming by,_ through or under it in connection with the Premises, and (b) such party is then either covered fn whole or in pru:f by insurance with respect to such loss, cost, damage or expense, or required· under this Lease to be so insured, then the party so insured (or so required) hereby releases the

other party from any liability said other party may have on account of such loss, cost, damage <>r: expense to the extent of any amount recovered by reason of such insurance (or which could ·have been recovered, had insurance been carried as so required) and waives any right of subrogation which might otherwise exist in or accrue to any person on account thereof. Inasmuch as this mutual waiver will preclude the assignment of any. such claim by subrogation (or otherwise) to:. an insurance company (or any other person), Lessor and Lessee each agree to give each insurance company that has issued, or in the future may issue, a policy of the type required from time to time pursuant to Section 7.1, written notice of the terms of this mutual waiver, and to have said insurance policies properly endorsed, if necessary, to prevent the invalidation of said insurance coverage by reason of said waiver. Notwithstanding the foregoing, the foregoing release and waiver of claims shall not be operative, nor shall the foregoing endorsements be required, in any case in which the effect of such release or waiver is to invalidate insurance coverage or the right of the insured to recover thereunder or increase the cost thereof (provided· that in the case of increased cost the other party shall have the right, within ten (1 0) Days following notice from the party procuring such insurance, to pay such increased cost, thereby keeping such release or waiver in full force and effect), nor shall it be construed as waiving any rights for claims of indemnification or reimbursement against third parties or for deductible • or self~insured retention amounts where the damage or loss is caused by the act or negligence o'r Lessor, Lessor's Beneficiary or Lessee.

7.10 Renegotiation; Disputes. In addition to the insurance required pursuant to Sections 7.1 and 7.2, Lessee shall also maintain at Lessee's own cost and expense, but forth¢ mutual benefit of Lessor, Lessor's Beneficiary and Lessee, insurance against such other hazards, liabilities or pot~ntial claims and in such amounts as may be reasonably requested from time: to. time by Lessor and which are reasonable and customary for lessees engaged in similar activities in the Chicago Metropolitan area. However, all ofthe provisions of this Article 7 relating to the: insurance required to be provided by Lessee shall be subject to review and redetermination from· time to time based on circumstances and changes in the insurance industry, customs and· availability of insurance for ground lessees of similar projects and premium costs or the Tenants and the nature of their respective businesses, and depending on the identity and financial• wherewithal of a Tenant, special accommodations and provisions for any such Tenant which is· self-insured. Lessor and Lessee shall negotiate in good faith from time to time to so review ahd. redetermine the requirements of this Article 7 in light of changing practices in the insurance. industry, customarily available coverages, costs and the objectives of Lessor and Lessee. If the. parties cannot reach agreement with respect to insurance requirements after such review an<i·· renegotiation, such disputes shall be determined by mediation and arbitration pursuant to . Article 18, provided that the mediator, arbitrator or arbitrators selected shall be an individual ot·• individuals experienced in interpreting, settling, mediating or arbitrating insurance policy or coverage disputes, and provided further that disputes with respect to the Full Insurable Value of the Buildings or other Improvements shall be determined pursuant to Article 19. ·

ARTICLES

8.1 Waiver of Right to Mechanics' Liens. Lessee shall have no right, authority or:

power to bind Lessor or Lessor's Beneficiary for the payment of any claim for labor or material· or for engineering or architect's fees, or for any charge or expense incurred in the erection, • construction, alteration, restoration, maintenance, operation or management of the Premises (including the Buildings or other Improvements), or to render Lessor's Estate liable for any lien. or right of lien for any labor, material, services (including management services) or for any other charge for expenses incurred in connection therewith. In addition, Lessee shall not under any circumstances be considered the agent of Lessor in conducting the Work or any other work undertaken in connection with any erection, construction, repair, renewal, replacement, reconstruction, alteration, restoration or maintenance of the Premises or. the Project or in the . operation of the Premises or the Project.

8.2 Liens Against Lessor's Estate. If any lien shall be filed against Lessor, Lessor's Beneficiary, Lessor's Estate or the Techny Land, including, but not limited to, the liens referred to in Section 8.1 or liens arising by reason of a non-payment by Lessee of any Imposition or any· other tax, debt, or other obligation for which Lessee is liable or by reason of any judgment involving monetary damages against Lessee, within the time period provided below, Lessee shall· procure and deliver to Lessor a full and complete cancellation and discharge thereof or shalf secure Lessor against damage for such failure to discharge or remove the same by either:

(i) depositing with Lessor, or, if the Security is more than $100,0p0.00, a Proceeds Trustee, Security in an amount equal to one hundred ten percent (11 0%) of the total of (x) the amount of the lien, (y) all interest and penalties payable in connection therewith, and (z) all charges that may or might be assessed against • or become a charge on the Premises, the Buildings or other Improvements, or any part thereof as a result of such lien; or

(ii) delivering to Lessor Security in the amount specified in clause (i) in the form of a guaranty or bond, provided such· guaranty or bond is in form reasonably satisfactory to Lessor and is made by a Person reasonably approved by Lessor at such time as to such Person's financial capability; or

(iii) delivering to Lessor Security in the form of a title insurance endorSeiJ1enl to Lessor's owner's title insurance policy in form and substance satisfactory to Lessor and increasing the coverage thereunder by the amount specified in clause (i).

If Lessee shall fail to procure and deliver to Lessor a full and complete cancellation and discharge of any such lien, or to deposit with Lessor or a· Proceeds Trustee the required form of Security in the amount so specified, in any case, within a time period expiring on the earlier of (x) ninety (90) Days after written notice from Lessor demanding such Security or (y) fifteen (15} . Days after the date the lien claimant files a proceeding to foreclose such lien, Lessor may, but shall not be required to, discharge or remove such lien. The amount so paid, together with all costs or expenses incurred by Lessor in connection therewith, shall be deemed Additional Rerit

payable by Lessee hereunder and shall become due and payable by Lessee immediately after the same shall have been paid by Lessor and notice thereof shall have been given to Lessee, and shall bear interest at the Lease Interest Rate from the date of such payment by Lessor until the date when paid by Lessee; provided that Lessor may not so discharge or remove any such liert nor shall an Event of Default be deemed to have occurred under this Section 8.2 if Lessee has deposited the

required form of Security in the required amount and is in good faith contesting the same in the same manner and subject to the terms and conditions as are provided in Sections 4~5 and 4.6 with respect to Lessee's right to contest Impositions and Lessor's joinder in any such . proceeding as if such provisions were repeated in this Section 8.2. · ARTICLE9

Assignments, Subleases, and Mortgages

9 .I Assignment by Lessee.

9 .1.1 Assignments to Permitted Assignees. Notwithstanding anything contained in Sections 9 .1.2 and 9 .1.3 of this Lease, prior to Substantial Completion of the Initial Project, this Lease and ·the leasehold estate in the Premises created hereby may not be transferred or assigned in whole (or in part) by Lessee to any other person, except Lessee may also admit as a member and transfer membership interests between the Wilmette Hockey Association, Inc. and' the Winnetka Hockey Club, Inc. (collectively, the "Hockey Clubs") and no such admission or transfer of membership interest shall be deemed an assignment pursuant to this Section 9 .1.1,: provided Lessee gives Lessor not less than five (5) Days' prior notice of such transfer· or· assignment. Additionally, Lessee may, prior to Substantial Completion of the Initial Project, assign one hundred percent (100%) of its interest in this Lease and the leasehold estate to a not:.. for-profit corporation whose sole members are the Hockey Clubs and no such transfer shall be deemed an assignment pursuant to this Section 9 .1.1, provided Lessee gives Lessor not less thari. five (5) Days' prior notice of such transfer or assignment. Promptly following any assignment or transfer to any Permitted Assignee under this Section 9.1.1, Lessee shall deliver to Lessor an. original executed counterpart of the instrument of assignment or transfer and assumption by the. assignee or transferee of its obligations as a member of Lessee. In no event shall such transfer. or assignment to a Permitted Assignee relieve the then named Lessee in this Lease or the .. Guarantor for any liabilities or obligations arising out of the named Lessee's or any of its Affiliates' own acts or omissions under this Lease or the Guarantors under the Guaranty of their· respective obligations hereunder, nor shall Lessee be released from its obligations under this Lease, and Lessee shall remain liable as a primary obligor and not a surety or guarantor for the • performance of the Lessee's obligations under this Lease. ·

9.1.2 No Other Assignments Prior to Substantial Completion Date. Except as otherwise provided in (i) this Section 9.1.2, (ii) Section 9.1.1 above with respect to ari assignment to a Permitted Assignee, (iii) Section 9.1.5 with respect to assignments or transfers by or through a Leasehold Mortgage or by assignment or transfer in lieu of foreclosure of any , such Leasehold Mortgage, (iv) Section 9.2 with respect to bona fide Tenants under Tenant· Leases, until the date which is twelve (12) months after the Substantial Completion Date for the, Initial Project, Lessee shall not assign or transfer, under any circumstance, whether voluntary or .. involuntary, or by operation of law, any or all of (x) this Lease, or any interest in the leasehold ·

estate hereby created, (y) any Buildings or other Improvements then existing on the Premises and owned by Lessee, or (z) a controlling interest in Lessee (meaning for such purposes an interest sufficient to peimit the assignee to control Lessee by possessing, directly or indirectly, the power to direct or cause the direction of the management and policies of Lessee, whether through the ownership of voting securities, general partnership interests, voting or controlling membership

interests, by contract or otherwise), without in each case first obtaining the prior written consent of Lessor, which consent may be withheld for any reason or no reason whatsoever. Any such consent of Lessor shall be on such terms and conditions as Lessor may impose, including~ without limitation, the requirement (except in the case of a transfer or assignment under ·
clause (iv) of this Section 9 .1.2) that this Lease, the leasehold estate hereby created any and, all Buildings and other Improvements then existing on the Premises and owned by Lessee under the terms of this Lease shall be transferred or conveyed to the same transferee or assignee.

9.1.3 Assignments After Substantial Completion. After twelve (12) months have passed from the date of Substantial Completion of the Initial Project, Lessee (or any Permitted Assignee to which Lessee previously assigned this Lease) may assign or transfer this Lease,. Lessee's Estate and Lessee's ownership interest in the Building to any other Person, without Lessor's consent, provided that (x) this Lease and the Lessee's Estate and Lessee's ownership interest in the Buildings shall be assigned, transferred or conveyed to the same transferee. or assignee, and (y) unless all of the following requirements are satisfied with respect to any assignment or transfer, neither Lessee nor Guarantor shall be released from any of their, respective obligations hereunder or under the Guaranty:

(a) No Defaults. No Event of Default, or Default, as evidenced by notice from Lessor, shall have occurred and remain uncured unless the cure of such Default or · Event of Default shall have been waived in writing by Lessor.

(b) Advance Notice to Lessor. Lessee or the Permitted Assignee, as the case may be, shall have provided to Lessor the identity of the proposed assignee or transfere~ not less than fifteen (15) Business Days prior to the proposed effective date of any proposed transfer or assignment, and within said fifteen (15) Business Day period Lessor, shall have reasonably determined that the proposed assignee or transferee has a character and reputation that does not violate the CBIS Principles then in effect and either is in the business of owning and managing real estate of a nature substantially equivalent to the Project, or has the capability, including the financial capability, to retain the services of a. property manager experienced in managing real estate of a nature substantially equivalent to the Project, but for purposes of this Section 9 .1.3(b), Lessor's failure to provide notice· within said fifteen (15) Business Day period shall be deemed a determination by Lessor that the proposed assignee or transferee has a character, reputation and capabilities meeting the foregoing requirements. ·

(c) Assumption by Assignee. The assignee or transferee shall have unconditionally assumed, pursuant to an instrument of assumption in form and substance reasonably satisfactory to Lessor, the performance of all of the terms, covenants,. conditions, agreements and obligations of Lessee to be performed or met under this Lease from and after the effective date of such assignment or transfer including, without

limitation, the obligation to use the Premises for the purposes and in the manner specified in Article 6.

(d) Environmental Obligations. If Lessee or the Permitted Assignee (or both), as the case may be, desires to be released from its obligations and liabilities under clauses, (vi) through (viii), inclusive, of Section 14.1.1 and under Article 15 of this Lease

(collectively, the "Environmental Obligations"), Lessee or the Permitted Assignee (or both), as the case may be, shall have provided to Lessor: ·

(i) the results of an assessment of the environmental conditions of the Premises and the Project conducted by a professional engaged in the business.of providing such assessments (any such environmental assessment, or the results of such assessment, being referred to herein as an "Environmental Report"), which Environmental Report shall be at Lessee's expense, dated not more than sixty (60} Days prior to the proposed effective date of any such transfer or assignment, shall be prepared by a firm reasonably satisfactory to Lessor, and shall confirm to Lessor's reasonable satisfaction (1) that the Premises and the Project are free from contamination by Hazardous Substances and other conditions or circumstances t4at would constitute a violation of Environmental Laws (other than Pre-Existing Environmental Conditions) or would otherwise obligate Lessee or the Permitted Assignee, as the case may be, to perform any Remediation pursuant to Article IS, and (2) that no Environmental Event has occurred or exists that has not previously been remediated in accordance with all Environmental Laws or the requirements of any Governmental Authority; or

(ii) a guaranty or other form of personal undertaking ("Environmental Guaranty") from the proposed assignee or transferee or if Lessor reasonably determines that the proposed assignee or transferee does not have sufficient financial re5ources adequately to assume or perform the Environmental Obligations, then, from a party or parties (such party or parties being herein referred to as an "Environmental Guarantor ..) other than the proposed assignee or transferee which Lessor does determine has sufficient financial resources *td* secure performance of the Environmental Obligations. If any Leasehold Mortgagee having a lien of not less than twenty-five percent (25%) of the Full ·
Insurable Value of the Buildings which has consented to any such assignment Or transfer subject to or with an assumption of the obligations under its Leasehol4 . Mortgage has required such an Environmental Guaranty, then for purposes of the foregoing provision, an Environmental Guarantor satisfactory to any Leasehold Mortgagee shall be accepted by and deemed reasonably satisfactory to Lessor, provided such Environmental Guarantor delivers an Environmental Guaranty to Lessor.

The EnVironmental Report delivered pursuant to clause (i) above shall be at the level· of so-called "Phase 1" assessment unless such assessment recommends additional testing or discloses the existence of an Environmental Event (other than a Pre-Existing Environmental Condition) that has not previously been remediated, and in such event, before the Environmental Report shall be deemed to satisfy the requirements of this

Section 9.1.3(d), Lessee or the Permitted Assignee, as the case may be, shall provide such additional testing or reports as to the nature, extent and results of any Remediation efforts undertaken as are reasonably required to evidence to Lessor's reasonable satisfaction that the requirements of clauses (i)(l) and (i)(2) above have been met.

Except as otherwise provided in Sections 9.1.1, 9.1.2 or 9.1.5, any assignment, transfer or other . conveyance of this Lease or Lessee's or the Permitted Assignee's leasehold estate in the Premises not meeting the foregoing requirements of this Section 9.1.3 shall require the prior written consent of Lessor and is void without such consent.

9.1.4 Assignment Documents. Promptly following any assignment or transfer of: this Lease pursuant to Sections 9.1.1, 9.1.2 or 9.1.3, Lessee or the Permitted Assignee, as the case may be, shall deliver to Lessor an original executed counterpart of the instrument of . · assignment or transfer and assumption. Effective upon any such assignment or transfer made with respect to which Lessee has satisfied the conditions of Section 9.1.3(a) through 9.1.3(c) and delivery to Lessor of an original counterpart of the instrument or instruments of assignment or transfer and assumption, Lessee or the Permitted Assignee (or both), as the case may be, shall be released from all obligations under this Lease other than those obligations for unpaid Rent and other monetary obligations accruing prior to the effective date of any such assignment or transfer; provided, however, that notwithstanding any such assignment or transfer, neither Lessee nor the Permitted Assignee shall be released with respect to any Environmental Obligations until Lessor shall have received an Environmental Report or an Environmental Guaranty from ail. Environmental Guarantor reasonably satisfactory to Lessor in form satisfactory to and for the benefit of Lesspr which meets the requirements of Section 9.1.3(d). Notwithstanding the foregoing, in no event shaH Lessee or any Permitted Assignee assign or transfer all or any portion of Lessee's or such Permitted Assignee's interest in or title to any Buildings or other Improvements.(other than transfers of Improvements to a municipality or other Governmental Authority as contemplated by Section 1 0.3 or in connection with securing a Leasehold Mortgage) to any Person without also assigning or transferring ~essee's or the Permitted Assignee's interest in and to this Lease concurrently therewith to the Person to whom such. Buildings or other Improvements have been assigned or transferred.

9.1.5 Leasehold Mortgages Not Prohibited. For purposes of this Section 9.1, the' making of a Leasehold Mortgage shall not be deemed to constitute an assignment or transfer:of. this Lease or of Lessee's Estate, nor shall any Leasehold Mortgagee, as such, be deemed an• assignee or transferee of this Lease or of Lessee's Estate so as to require the Leasehold. Mortgagee, as such, to assume the performance of any of the terms, covenants, conditions, · agreements and obligations on the part of Lessee to be performed or met hereunder. In addition, any sale of Lessee's or the Permitted Assignee's interest in this Lease and ofthe Lessee's Estate in any proceedings for the foreclosure of any Leasehold Mortgage, or the assignment or transfer . of this Lease and- of Lessee's Estate under any instrument of assignment or transfer in lieu of the· foreclosure of any Leasehold Mortgage, shall not be deemed to be an assignment or transfer· within the meaning of Sections 9.1.2 or 9.1.3 for which Lessor's consent shall be required, but the assignee or transferee in any such assignment or transfer shall be deemed to have assumed the performance of all of the terms, covenants, conditions, agreements and obligations on the· part of Lessee or the Permitted Assignee, as the case may be, to be performed hereunder from : and after the date on which the Leasehold Mortgagee or someone claiming by, through or under ·

the Leasehold Mortgagee has succeeded to Lessee's or the Permitted Assignee's rights created pursuant to this Lease. In addition, any subsequent assignment by the assignee or transferee obtaining Lessee's or the Permitted Assignee's interest in this Lease and of Lessee's Estate pursuant to a foreclosure proceeding or in lieu of foreclosure shaH be subject to the provisions of Section 9.1.2 regardless of whether such subsequent assignment occurs before or after the date which

is twelve (12) months following the date of Substantial Completion ofthe Initial Projeet;. but if the Initial Project has not yet been Substantially Completed, Lessor shall not be obligated · to consent to any such subsequent assignment or transfer unless the Guarantor under the Guaranty has begun the Work to Substantially Complete the Initial Project or the transferee or assignee in such subsequent transfer agrees to Substantially Complete the Initial Project and provides a new Guaranty with respect thereto in the same form attached hereto as Exhibit G. ·

9.1.6 Other Actions. The limitations on transfer contained in this Section 9:1 shall not be deemed to apply to or prevent, nor shall Lessor's approval be required in connection with (i) the granting of easements or permits to facilitate the development of the Premises in accordance with the terms of this Lease; (ii) the granting of security interests in personal property, trade fixtures and trade equipment; or (iii) entering into Tenant Leases.

9.2 Tenant Leases.

9.2.1 Conditions on Tenant Leases. If at any time the Permitted Use for any portion of the Initial Project or any new Project developed on the Premises by Lessee; contemplates, a separate Building or Buildings or a separate space or spaces within a Building or . Buildings for lease or sublease to Tenants then; ·)

(a) Required Lease Terms. Lessee shall permit occupancy of all or any portion of a Building or Buildings from time to time comprising any part of the Project only under a Tenant Lease or Tenant Leases meeting the requirements of Section 9 .2.1 (b) below and the following requirements: (1) each such Tenant Lease (x) must be in writing, (y) must be for a term, including options, extensions, or renewals, not to exceed the Term; of this Lease, and (z) must be for a Permitted Use consistent with the requirements of Section 6.1 and Section 62; (2) any rent or other sums charged by Lessee pursuant to any Tenant Lease shall be at market rates for similar projects, taking into account the location, nature and extent of Tenant Finish Improvements to be paid for by Lessee or. such Tenant, the Tenant mix within the Project and the overall nature and cost of the· Project or the Building within the Project in which such Tenant is to be located; and (3) if based on, computed on the basis of, or measured in whole or in part by a percentage~ · fraction or similar measure of sales, revenues or income ("Tenant Percentage Rent")~ such Tenant Percentage Rent shall be based on gross sales, gross revenues or gross · income, and shall not, under any circumstances, be based on, or computed on the basis of or measured in whole or in part by the net income or net profits of any Tenant.

(b) Specific Lease Language Required. In addition, each Tenant Lease shall, contain provisions reading substantially as follows;

(i) Tenant is informed and understands that Landlord is the lessee under a lease of the land, which lease requires among other things, that certain.

provisions be contained in Landlord's lease with Tenant.

Accordingly, the provisions of this paragraph are a material part of this Lease and may not be modified or altered by this Lease or by Tenant's or Landlord's course of conduct hereunder. Tenant shall not pay and Landlord shall not accept any payment of rent sooner than three months in advance of when the same shall be due, and Tenant shall not pay and Landlord shall not accept any rent based on ~ percentage, fraction or

similar measure of the net income or net profits of Tenant,· it being expressly agreed that any rent based on a percentage, fraction or similar :
measure shall be based solely on gross sales, gross revenues or gross income.· Tenant. shall permit the owner of the land and its authorized representatives~· . . subject to Tenant's rights hereunder, to enter the premises at all reasonable times: and upon prior reasonable notice for the purpose of inspecting the same.

(ii) Tenant shall not use the name "Techny" or "Society of the Divine. Word .. or "Divine Word Techny Community .. or any words or phrases similar thereto or suggesting any religious affiliation or other affiliation with the lessor · · under Landlord's lease of the land (except in connection with Tenant's stree(address) without the prior written consent of the lessor under Landlord's lease of ~~~- .

(iii) From time to time Tenant, on at least ten (1 0) days' prior written: request by Landlord, will deliver to Landlord a statement in writing certifYing (i) . that this Lease is unmodified and in full force and effect (or if there shall have • been modifications, that this Lease is in full force and effect as modified and : stating the modifications), (ii) the dates to which the rent and other charges have .. ·
been paid, and (iii) whether or not the Landlord is in default in performance of MY covenant, agreement or condition contained in this Lease and, if so~ . specifying each such default of which Tenant may have,knowledge, and (iv) such· . . other matters as may reasonably be requested by Landlord.

(c) Other Requirements. Finally, each Tenant Lease shall contain such other · provisions as may be required pursuant to this Lease, including, without limitationt .. provisions meeting the applicable requirements of Article 5, Article 7, Article 12 and· · Section 16.1.

9 .2.2 Non-Disturbance and Attornment Agreements. The following requirements - shall govern Lessor's obligation, if any, to deliver Non-Disturbance Agreements to any Tenarits under any Tenant Leases: · ·

(a) Leases of Two Years or Less. Lessor will have no obligation to enter into • any Non-Disturbance Agreement with respect to any Tenant Lease that has an initial term·. (including any extensions or renewal options that are available to such Tenant, regardless · of whether exercised) of two (2) years or less. However, if Lessor agrees, in its sole
discretion, that it will provide a Non;.Disturbance Agreement under such circumstances at • Lessee's request, Lessee shall pay Lessor an administrative fee of $1,000.00 for each· such Non-Disturbance Agreement provided, which fee

(b)

Leases of Two to Five Years. With respect to any Tenant Lease having a term of more than two (2) but not exceeding five (5) years (including any extensions or renewal options that are available to such Tenant~ regardless ofwhether exercised), upon the request of Lessee from time to time, if at the time of such request there is a Leasehold Mortgage encumbering Lessee's Estate securing indebtedness equal to at least twenty.
five percent (25%) of the Full Insurable Value of the Buildings, and if the holder of the indebtedness secured by such Leasehold Mortgage has already entered into a subordination, non-disturbance and attornment agreement with such Tenant substantially on the terms hereinafter stated and satisfactory evidence thereof is provided to Lessor~s Beneficiary, Lessor's Beneficiary will enter into a non-disturbance and attornment agreement with such Tenant on Lessor's standard form in the fonn attached hereto as Exhibit L ("Non-Disturbance Agreement") to the effect that Lessor will not evict such Tenant upon'the termination of this Lease by reason of a Default or an Event of Default ·
by Lessee, so long as (i) such Tenant (1) is not then in default under such Tenant Lease; (2) agrees to enter into a new lease covering the same premises leased pursuant to such Tenant Lease and otherwise on the same terms, conditions and rent provided in such Tenant Lease, and (3) agrees to attorn to Lessor at the request of Lessor and to execute and deliver to Lessor at any time and from time to time upon request any instrument which in the reasonable judgment of Lessor may be necessary or appropriate to evidence .
such attornment, and (ii) such Tenant has not paid to Lessee more than three (3) months' rent in advance of the then current month. Lessee shall pay Lessor a fee of $7 50.00 (said fee of$750.00 to be increased for any Non-Disturbance Agreement entered into after ~e fifth Lease Year and every five (5) Lease Years thereafter by ten percent (10%)) for each. such Non-Disturbance Agreement executed by Lessor on Lessor's form, which fee shail: be paid concurrently with the delivery by Lessor of a request for such Non-Disturbance. Agreement. Any negotiated changes to Lessor's form shall be subject to the payment by such Tenant of any attorneys' fees incurred by Lessor in connection therewith in excess of the fee initially deposited with Lessor.

(c) Leases of More Than Five Years. With respect to (x) any Tenant Lease having an initial term of five (5) years or more (including any extensions and renewal options f4at are available to such Tenant, regardless of whether exercised) and regardless of whether there is any Leasehold Mortgage in place, or (y) any Tenant Lease having an initial term greater than two (2) years but not exceeding five (5) years but as to which· Section 9.2.2(a) does not apply, Lessor will, from time to time, upon the request of
Lessee, accompanied by payment of an amount estimated by Lessor to be sufficient to· cover Lessor's administrative expenses in reviewing such Tenant Lease and preparing· and negotiating such Non-Disturbance Agreement, undertake to determine whether the • rent to be paid by such Tenant under such Tenant Lease is, in the light of other existing Tenant Leases of space within any Buildings or Tenant Leases of all of the Buildings on the Land,- and other circumstances affecting the future maintenance and operation of all - Buildings, sufficient to assure continued payment of the Base Rent and Additional Rent . required to be paid under this Lease, as .well as the maintenance and operation of all·· Buildings in a manner substantially similar to the maintenance and operation of other . buildings that are similar to the Buildings in class and quality in the general locality of·. the Buildings, and whether approval of such Tenant Lease will risk imposition of any financial or managerial burdens of a substantial nature or expense upon Lessor {including

any

obligations that might result in the imposition of unrelated business income taxes). If. such Tenant Lease, with such revisions or modifications as may be required by Lessor to meet the tests set forth in the preceding sentence, is satisfactory to Lessor, then Lessor · will enter into a Non"Disturbance Agreement with the Tenant under such Tenant Lease,. in the same form as provided in Section 9.2.2(a) above, conditioned upon such Tenant or :

Lessee reimbursing Lessor for any such administrative expenses actually incurred iil

excess of the initial payment. ·

9.2.3 Forms for and Schedule of Tenant Leases. Prior to entering into the first of any Tenant Leases, Lessee shall submit to Lessor for review and comment the provisions of· Lessee's form lease (or actual Tenant Lease) which set out the manner in which Tenant rent and. reimbursements for Common Area Maintenance Charges, Impositions or increases will be · determined (and prior to making any material changes to such provisions that have been • previously reviewed by Lessor) in order for Lessor to review such form for conformity with th¢ provisions of thi~ Lease. Within thirty (30) Days after written demand, but not more often than once during any Lease Year, Lessee shall furnish to Lessor a schedule, certified as true and· correct by Lessee, setting forth all Tenant Leases then in effect and including with respect to· each such Tenant Lease thereunder such information as (i) the name of the Tenant or Tenants, (ii) a description of the space or Building leased to such Tenant, (iii) the annual rental payable by. each such Tenant thereunder, and (iv) such other pertinent data and information with respect to· each Tenant Lease as Lessor may reasonably request. In addition, upon the request of Lessor, • . Lessee shall furnish to Lessor true and correct copies of such Tenant Leases from time to time in effect. ·

9.2.4 Conformity to Permitted Use. Nothing contained in this Section 9.2 shall be construed as consent by Lessor to any change in the Permitted Use for·the Premises. Lessor reserves the right, as provided in Section 6.1 of this Lease, to approve any proposed change in the Permitted Use by amendment to this Lease and to make such modifications to thls Section 9.2 as may be appropriate under the circumstances.

9.3 Mortgage by Lessee.

9.3.1 Leasehold Mortgages Permitted; Notice to Lessor. Lessee shall have the right, without Lessor's consent, to mortgage its interest under this Lease and in the Buildings and Improvements by means of a Mortgage for any purpose related to the financing or refinancing of the Project, for any amounts and upon any terms, including term of loan, interest rates, payment terms (including balloon or amortizing loans), prepayment privileges or other restrictions as may be desired by Lessee, provided that (i) at the time of making such Mortgage, there is no existing or uncured Default or Event of Default, and (ii) within ten (10) Days after the execution and delivery of any such Mortgage, the requirements of Section 9.3.2 are satisfied (any Mortgage meeting the foregoing requirements and any supplement thereto or any modification renewal; replacement or extension thereof is referred to herein as a "Leasehold Mortgage"). Notwithstanding the foregoing, no Leasehold Mortgage shall ext~d ·to or affect all or any portion of Lessor's Estate.

9.3.2 Requirements for Effective Notice. Lessor shall not be deemed to have notice of any Leasehold Mortgage, of any amendment to supplement, modify, renew, replace or

extend the same 'Or of any assignment thereof, nor shall Lessor have any duty or obligation with respect thereto, unless and until (i) a copy of the original of such Leasehold Mortgage, · amendment or assignment, as the case may be, certified by the Leasehold Mortgagee as being a true, correct and complete copy thereof, is delivered to Lessor, and (ii) written notice containing · the name and address of the Leasehold Mortgagee or assignee of such Leasehold Mortgagee, as • the case may be, is given to Lessor in the manner provided in Article 24. If any Leasehold

Mortgage is held by more than one Person, the foregoing provisions of this Lease requiring_ Lessor to give notices or copies of notices to the Leasehold Mortgagee shall not be binding on · Lessor unless and until all of the holders thereof shall give Lessor a written notice executed by.· all such holders, in a recordable form, designating one Person to whom all notices for all such· holders shall be given, as agent for all such holders.

9.3.3 Leasehold Mortgagee's Consent to Certain Actions Required. Except as otherwise provided in Articles 17 and 25, effective upon Lessor's receipt of notice of a Leasehold Mortgage meeting the requirements of this Section 9.3, Lessor agrees it will not amend, modify, cancel or terminate this Lease without the prior written consent of the Leasehold · Mortgagee under any Leasehold Mortgage, so long as such Leasehold Mortgage shall remain .iii effect. ·

9.4 Mortgage by Lessor. Nothing contained in this Lease shall be construed to preclude; (i) Lessor at any time and from time to time; with any lender and on any terms, from creating it lien on or mortgaging Lessor's Estate by means of a Mortgage or from entering into an· amendment to supplement, renew, modify, consolidate, replace or extend the same (any such Mortgage and any supplement thereto or any modification, renewal, consolidation, replacement .·

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or extension thereof is referred to herein as a "Fee Mortgage") or (ii) any Fee Mortgagee from assigning the· same, provided that in either or any such case (x) any lien, rights or interest~. created thereby shall at all times be subject to this Lease and the leasehold estate created by tlris: Lease and to the terms, covenants and conditions of this Lease and to any Leasehold Mortgage and shall in no way prohibit any future development of the Premises in accordance with this Lease; and (y) Lessor shall not mortgage portions of Lessor's fee title interest in the Premises o"r any other parcels of land that may be within the zoning lot of which the Premises is.a part to different Fee Mortgagees. Lessor shall provide Lessee with notice of the name and address of the Fee Mortgagee promptly following execution of any Fee Mortgage.

ARTICLE 10

Condemnation

10.1 Condemnation of Entire Premises or a Portion Where No Restoration. If at any time during the Term ofthis Lease, (i) the entire Premises or the entire Project shall be taken in any Condemnation ·Proceeding, or (ii) less than the entire Premises shall be taken in any Condemnation Proceeding, but it shall have been agreed between Lessor and Lessee that in any such case either ·the Project cannot be repaired, restored or replaced in a manner that permits the remaining portions thereof to be operated as an economically useful and architecturally complete unit or the Premises cannot be redeveloped in a manner mutually acceptable to Lessor arid Lessee, then this Lease shall, or may at Lessee• s election, in the case of a partial taking under clause (ii) above, terminate on the earlier of (x) the date possession is transferred to the

condemning Governmental Authority, or (y) the date title is vested in the condemning Governmental Authority under such Condemnation Proceeding. In such event, all Rent and other amounts payable by Lessee hereunder shall be prorated to the date on which this Lease so terminates. Notwithstanding any judicial allocation of any award made in the Condemnation Proceeding, such award shall be distributed first to pay the indebtedness secured by W1Y

Leasehold Mortgage equal to the then remaining balance due such Leasehold Mortgagee under its Leasehold Mortgage, provided such Leasehold Mortgage secures indebtedness advanced only for purposes of financing the improvement, development, leasing -or purchase of Lessee;s leasehold estate in the Premises and the Building or Buildings and other Improvements or refinancing existing indebtedness initially incurred for such purpose. If such Leasehold Mortgage purports to secure other such indebtedness of Lessee incurred in connection with other projects or properties, then such Leasehold Mortgagee shall be paid an amount not to exceed the Appraised Value of the Lessee's leasehold estate in the Premises and the Building or Buildings and other Improvements. The balance of any such award shall be divided between Lessor and Lessee in accordance with any judicial allocation of such award made in the Condemnation Proceedings or, in the absence of any judicial allocation, in proportion to the respective Appraised Values of Lessor's Estate and the remaining estate of Lessee, with the Appraised Value of Lessor's Estate to be paid in full prior to any payments to Lessee.

10.2 **Partial Condemnation.**

1 0.2.1 Restoration; Other Obligations. If at any time during the Term of this Lease less than the · entire Premises or entire Project shall be taken in any Condemnation Proceeding and it shall have been agreed between Lessor and Lessee that either portions of the Project can be repaired, restored or replaced in a manner that permits the remaining portions thereof to be operated as economically useful and architecturally complete units or the Premises can be redeveloped by Lessee in a manner and pursuant to a Redevelopment Plan mutually acceptable to Lessor and Lessee, then this Lease shall not terminate but shall continue in full force and effect for the remainder of the stated Term, and Lessee shall continue to perform and observe all of the. terms, covenants, conditions, agreements and obligations of Lessee to be performed under this Lease as though such taking under had not occurred, subject to the provisions of this Section 1 0.2. Base Rent shall abate equitably in proportion to the percentage diminution, if any, in the Appraised Value of the portion of the Premises and the Project so taken as of the date title is vested in the condemning Governmental Authority under the Condemnation Proceeding, and such reduced Base Rent shall become the Base Rent for all purposes of this: Lease from and after such date, subject to adjustment from that date forward under the provisions of Article 3. If the parties are unable to agree on the Appraised Value of the portion of the Premises and Project so taken within sixty (60) Days of the notice of the Condemnatioit Proceedings, then such Appraised Value shall be determined in the manner set forth in· Article 19. Lessee shall, at its sole cost and expense, but with the right to use the proceeds frortl the Condemnation Proceeding, promptly (subject to Unavoidable Delays) complete the Restoration of that portion of the Premises and the Project not so taken unless the parties have agreed to a Redevelopment Plan, in which case the provisions of Section 12.3 shall apply, . or. unless Lessee proposes to Lessor and Lessor agrees, in its sole discretion, that Lessee may defer any portion of such Restoration, including rebuilding of any Building taken in its entirety until a

later time, in whjch case such Restoration shall, for all purposes hereof be treated as a partial. Redevelopment Plan to be submitted at the time Lessee and Lessor then agree Lessee may or

must propose such partial Redevelopment Plan. Notwithstanding the foregoing provisions with respect to a deferred Restoration and partial Redevelopment Plan, Lessee shall nevertheless be required to restore any disturbed portions of the afforested areas, parking lots or other landscaped .. . areas within the remaining portions of the Land or any partially taken Building or Buildings so as : . to present a completed, attractive appearance pursuant to plans approved by Lessor as part of its · approval of the

deferred Restoration. Before Lessee shall let any contracts for, or commence the . work of, such Restoration, and dunng the course of such Restoration, Lessee shall comply with : · the applicable provisions of Article 12.

1 0.2.2 Use of Award. Notwithstanding any judicial allocation of any award in· the Condemnation Proceedings, such award shall be paid to the Leasehold Mortgagee, or in the · absence of a Leasehold Mortgagee, to Lessor and shall be held by the Leasehold Mortgagee, .. Lessor, or a Proceeds Trustee, as the case may be, in the manner set forth in Article 12, but shall· · be made available to Lessee for Restoration of the Premises and Project as required pursuant to .. this Section 1 0.2. The balance of any such award remaining after completion of the Restoration · or Redevelopment Plan, as the case may be, shall be divided between Lessor and Lessee aS • provided in the next two sentences. Lessee shall be entitled to an amount equal to the award given in the Condemnation Proceedings (less amounts applied to Restoration) multiplied by a· fraction, the numerator of which is the number of Lease Years between the Lease Year in which the award in any Condemnation Proceeding is made and the then remaining number of Lease Years in the Term (rounded to the nearest number of years) and the denominator of which is • fifty-five (55), but in no event shall said fraction be more than fifty-five over fifty-five {55/55). The remaining b~ance of any such award shall be paid to Lessor.

10.3 **Condemnation for Limited Time.**

10.3.1 Lease Remains in Effect. If, during the Term of this Lease all or any portion of the Premises shall be taken for occupancy by any Governmental Authority for a· ·limited period of time, this Lease shall not terminate but shall continue in full force and effect for. the remainder of the stated Term, and Lessee shall continue to perfonn and observe all of the· terms, covenants, conditions, agreements and obligations of Lessee to be performed under this Lease as though such taking had not occurred, except only to the extent that it may be prevented · from doing so by reason of such taking. Lessee, however, shall in no event be excused from the·. · payment of Rent and all other sums and charges required to be paid by Lessee under this Lease. ·

10.3.2 Allocation of Award. Notwithstanding any judicial allocation of any· award made in the Condemnation Proceedings, Lessor hereby assigns such award to Lessee and Lessee shall be entitled to receive the entire amount of any award made for such taking (whether· paid by way of damages, rent or otherwise; provided, however, where the award is not to be paid· as rent in substantially equal installments over the period of such Governmental Authority's · occupancy, Lessor may require Lessee to deposit all or a portion of the award with a Proceeds Trustee or an escrow agent mutua1ly acceptable to Lessor and Lessee to be applied against Rent. as it accrues hereunder) unless the period of such Governmental Authority's occupancy extends' beyond the Expiration Date, in which case the award shall be divided between Lessor and Lessee. so that Lessor shall receive an amount equal to the sum of that portion of the award, if any, that represents the cost of restoring the Premises at the termination of any such Governmental. Authority's occupancy, plus the portion of such award attributable to the period of sue~

occupancy that will extend beyond the Expiration Date and Lessee shall receive the balance of such award. In the event the Termination Date shall occur after any apportionment of the award made hereunder, but prior to the Expiration Date, the award shall be reapportioned as of the Termination Date in accordance with the provisions of this Section 10.3 as though the Expiration. Date had occurred as of the Termination Date and Lessee shall, promptly on demand, make any . payment to Lessor required to effect such reapportionment, which obligation shall continue in · full force and

effect, until satisfied in full, regardless of the termination of this Lease.

1 0.3.3 Restoration. At the termination of any such Governmental Authority's · occupancy, Lessee shall, at its sole cost and expense, subject to receiving Lessee's share of the · award as contemplated in Section 10.3 .2 above (but without regard as to whether such share shall • be sufficient), promptly (subject to Unavoidable Delays) complete the Restoration of the. Premises, but Lessee shall not be required to perform such Restoration if the Expiration Date shall occur on or prior to the date such occupancy is terminated or if the date on which such Governmental Authority's occupancy is terminated is less than two (2) Lease Years prior to the Expiration Date. ·

10.4 Disputes. Except as otherwise specifically provided in this Article, disputes arising under this Article 1 0 shall be subject to the negotiation and mediation provisions of Section 18.1, . followed by a determination through arbitration pursuant to Article 18.

ARTICLEll

Damage and Restoration

11.1 Damage Requiring Restoration by Lessee. Except as otherwise provided in . Section 11.3, if less than fifty percent (50%) of the Full Insurable Value of the Building *ot* · Buildings shall be damaged or destroyed by a Casualty (regardless of,the amount of the loss or the existence of insurance to cover such loss), or if fifty percent (50%) or more of the Full Insurable Value of the Building or Buildings shall be damaged or destroyed by a Casualty and . the proceeds of any applicable insurance, together with the deductible that is to be provided by Lessee as provided herein, shall be sufficient to pay the costs of Restoration, as reasonably estimated by Lessee as promptly as practicable after the date of the Casualty, Lessee shall cause' the Restoration of such Building and any other portion of the Premises destroyed by such : Casualty as promptly as is reasonably practicable. Notwithstanding the foregoing, in the event.· the Premises or a Building is damaged or destroyed by a Casualty and Lessee is obligated to perfonn Restoration, Lessee may propose to Lessor for Lessor's approval, which approval may be withheld in Lessor's sole discretion, either that it (i) construct or reconstruct a different Building than the one that existed prior to the Casualty, or (ii) defer any portion of such Restoration~ including rebuilding of any Building that is completely destroyed, until a later time; In either case, such Restoration shall, for all purposes hereof be treated as a partial. Redevelopment Plan to be submitted at the time Lessee and Lessor then agree Lessee may or . must propose such Redevelopment Plan or partial Redevelopment Plan pursuant to Section 12.3 · below. If Lessee selects and Lessor approves the option under either clause (i) or clause (ii) of the preceding sentence, then Lessee shall nevertheless be required to continue to pay the full · amount of Base Rent without any abatement, and in the case of an election under clause (ii), to • restore any damaged or disturbed portions of the parking lots within the remaining portions of ·

the Land or any partially destroyed Building or Buildings so as to present a completed, attractive appearance pursuant to plans approved by Lessor as part of its approval of the deferred Restoration. Before Lessee shall let any contracts for, or commence the work of, such·.
Restoration, and during the course of such Restoration, Lessee shaH comply with the applicable ·
provisions of Article 12. ·

11.2 Damage Allowing Lessee an Option to Terminate; Clearing of Premises

11.2.1 Termination Notice.

(a) Termination Due to Extent of Loss. If fifty percent (50%) or more ofthe · Gross Square Feet of the Building owned by Lessee shall be damaged or destroyed by a: . Casualty caused by reasons other than the willful misconduct of Lessee and if any applicable insurance proceeds, together with any applicable deductibles or self-insured retentions that are to be provided by Lessee as provided herein, are not sufficient to cover all costs of the Restoration, of such Buildings and other Improvements damaged, as · reasonably estimated by Lessee as promptly as practicable after the date of such Casualty, then so long as there is no Event of Default or Default with respect to Lessee's obligation to maintain insurance as required pursuant to Article 7, or with respect to any other monetary· obligations of Lessee hereunder, Lessee shall have the right to terminate this . Lease by giving a Termination Notice to Lessor within fifteen (15) Days after Lessee so· determines the estimated cost of the Restoration. The Termination Notice shall state .· Lessee's estimate of the cost of the Restoration and the amount of available insurance proceeds and deductibles or self-insured retentions. The Termination Notice shall not . become effective to terminate this Lease unless Lessee also provides to Lessor such other . inform~tion and documentation to support Lessee's estimate of the cost of the Restoratic:m · as Lessor may reasonably request within fifteen (15) Days after delivery of Lessee's.: Termination Notice and Lessee pays to Lessor, concurrently 'With the delivery of such·. Termination Notice, (i) any and all unpaid Rent due Lessor under Article 3 of this Lease, · and (ii) all other amounts required to cure any other unpaid or unreimbursed monetary • obligations of Lessee under this Lease. ·

(b) Other Bases for Termination. Lessee sha11 also have the option to . terminate this Lease by a Termination Notice to Lessor given within sixty (60) Days after .· the date of occurrence of a Casualty that occurs: (i) at any time after the thirtieth (30th)' Lease Year (if Lessee has not developed a new Project on the Premises followiJ:lg : Substantial Completion of the Initial Project), (ii) at any time after the thirtieth (30th). • Lease Year following development of a new Project on the Premises (if Lessee had previously constructed any new Project on the Premises pursuant to a Redevelopment .. Plan approved by Lessor in the manner provided in Section 12.3), or (iii) at any time . when the insurance proceeds are not sufficient to restore and either: (x) fifty percent .. (50%) or more of the Gross Square Feet of the Building owned by Lessee shall, by reason • of a Casualty, be completely destroyed or so substantially damaged (as reasonably. determined by Lessor and Lessee) as to require demolition to the foundations, or (y);. Restoration of the Project following a Casualty cannot be performed because of a legal· ' prohibition, then as long as no Event of Default or Default exists at the time ·a·. Termination Notice is given by reason of Les'see's failure to maintain insurance as)

required pursuant to Article 7 or satisfY any other monetary obligations of Lessee under this Lease.

11.2.2 Termination Date; Lessee's Obligation to Clear Premises. If Lessee gives a Termination Notice to Lessor within the time period provided in this Section 11.2, the. Tennination Date shall be as of the date of the occurrence of the Casualty that gave rise to the· option, and all Rent

and other amounts payable by Lessee under this Lease shall abate as of the . date of occurrence of the Casualty, but the Termination Notice shall not become effective to· terminate this Lease unless Lessee pays to Lessor, concurrently with the delivery of such· Tennination Notice, (i) any and all unpaid Rent due Lessor under Article 3 of this Lease, and (ii) · all other amounts required to cure. any other unpaid or unreimbursed monetary obligations of • Lessee under this Lease. Notwithstanding the foregoing, Lessor shall have the right to require by notice to Lessee,. given within sixty (60) Days of the receipt of Lessee's Tennination Notice, that· Lessee clear the Premises and remove all debris. The duty to clear the Premises and remove all ·. debris imposed upon Lessee hereunder includes, but is not limited to, the duties to demolish and . remove the Building that was destroyed or so damaged by such Casualty and all other · Improvements associated with such Building, including all basements and foundations, to fill all . excavations, to return the surface to grade, and to leave the portion of the Premises on which such Building and other Improvements were located safe and free from debris and hazards, or to . perform such lesser degree of removal as is requested by Lessor. Notwithstanding Lessee's election to terminate the Lease, all obligations of Lessee arising or occurring pursuant to this . Lease prior to the Tennination Date or under this Section 11.2 shall continue in full force and. effect, until satisfied in full, regardless of the exact Termination Date and the termination or expiration of the Lease itself.

11.3 Procedures for Restoration. Lessee shall promptly commence any Restoration· required to be done by Lessee pursuant to this Article 11 following a Casualty and shall· diligently pursue the same to completion, subject to a reasonable allowance for the time neede<}. to adjust any insurance claims and Unavoidable Delays. Before Lessee shall commence the Restoration or let any contracts therefor, and at all times during the course of the Restoration, ·. Lessee shall comply with the applicable provisions of Article 12. In addition, at all times Lessee shall continue to perform and observe all of the terms, covenants, conditions, agreements and. obligations of Lessee to be perfonned under this Lease notwithstanding any loss, damage or destruction, except for temporary suspension of performance rendered impossible by such· Casualty.

11.4 Application of Insurance Proceeds.

11.4.1 If Lease is Not Tenninated. If this Lease is not terminated on account of any Casualty pursuant to Section 11.2 • any insurance proceeds paid to the Proceeds Trustee and· deductibles self-insured retentions or other amounts deposited with the Proceeds Trustee by Lessee as required herein shall be used to pay the cost of the Restoration and shall, subject to the. provisions of Section 7.8, be disbursed for such purpose by the Proceeds Trustee from time to time as the Restoration progresses, upon request by Lessee, accompanied by such affidavits,. certificates, waivers, releases and other proofs as are required pursuant to clauses; (1) through (4) · of Section 12.l.l(e)(iv) (regardless of whether the funds were deposited pursuant to such an Escrow Agreement). If at the time of any such request by Lessee the estimated cost to complete

the Restoration, as reasonably determined by Lessor, is in excess of any insurance proceeds and deductibles or self-insured retentions or other amounts then held by the Proceeds Trustee, Lessor may direct the Proceeds Trustee to cease making any further disbursements on account of the Restoration until Lessee shall have either (i) provided the Proceeds Trustee with a cash deposit •

for the amount of any estimated shortfall or (ii) provided to Lessor reasonable evidence of the availability of additional funds to cover such excess and guarantees of completion of the Restoration

reasonably acceptable to Lessor. Costs of administering such disbursemeni procedure shall be paid out of the funds on deposit with the Proceeds Trustee. When the · Restoration has been completed and paid for and it appears to the Proceeds Trustee's satisfaction. that no liens can attach to the Premises or the Project as a result of the Restoration, all insurance . proceeds and the funds of Lessee then remaining in the Proceeds Trustee's hands shall, except as· otherwise provided in Section 13.3, be promptly paid to Lessee or to Lessor (in the case of any· Restoration pursuant to Section I I .2 after an election by Lessor to continue this Lease, but only · to the extent of any funds expended or deposited by Lessor pursuant to Section I I .2 plus interest at the Lease Interest Rate from the date such funds were so expended or deposited).

I 1.4.2 If Lease Is Terminated. If this Lease is terminated pursuant to Section 11.2, any insurance proceeds paid to the Proceeds Trustee on account of any Casualty shall be used, first to clear the Premises and to remove all debris (as provided in said· Section 11.2) if and to the extent requested by Lessor, and then to repay any Leasehold Mortgagee for the indebtedness secured by such Leasehold Mortgagee's Leasehold Mortgage; • Thereafter, Lessor shall be entitled to receive an amount from the insurance proceeds equal to the next two calendar years of Base Rent at the applicable rate for such years (commencing as of the day after the Termination Date) plus two calendar years of taxes determined for the sam{}:) calendar time period for which Base Rent is to be determined but based on 1 I 0% of the most . recent real estate tax bill issued with respect to the Premises for the first such calendar year and 120% of the most recent real estate tax bill issued with respect to the Premises for the second . such calendar year. The amount to be paid to Lessor on account of Base Rent and real estate · taxes shall be deposited into an escrow account with a Proceeds Trustee approved by. Lessor (which need not be the same Person as the Proceeds Trustee holding the other insuranCe proceeds) pursuant to instructions that will automatically pay to Lessor one-twenty-fourth (1124) . of the initial deposit monthly by wire transfer on the first business day of each month until the • earlier of (i) the date such proceeds have been disbursed in full, or (ii) · the first day of the calendar month following the date on which Lessor has entered into a new ground lease for the Premises and the lessee thereunder has begun paying rent to Lessor. In the event there are any . funds remaining in the escrow account as of the date when payments to Lessor are required to . cease pursuant to clause (i) or clause (ii), then all funds remaining shall be paid to Lessor, if the .. payments are required to cease pursuant to clause (i), and shall be paid to Lessor and Lessee in· · ·the same proportions as the initial deposit made into the escrow was divided between Lessor and Lessee, if the payments are required to cease pursuant to clause (ii). All funds on deposit ii1 · such escrow shall be invested in such federally insured or federally issued. instruments as Lessor · shall from time to time direct, with all investment fees to be paid from the earnings thereon. The · cost of the escrow shall be added to the amount deposited from the insurance proceeds and shal\ · be held in the escrow and disbursed to pay the fees of the Proceeds Trustee as and when required pursuant to the escrow instructions. Except as provided above and in the immediately following sentences, Lessee shall be entitled to all remaining proceeds. Notwithstanding the foregoing, as .. of the date the respective shares of Lessor and Lessee in any such remaining proceeds are

determined, if. Lessee has failed to pay any of the amounts due Lessor pursuant to Section 11.2.1, or has failed to remove aU debris and restore the Premises as required under. Section 11.2.3, then Lessor shall be entitled to a payment of all such amounts then remaining due Lessor or reasonably estimated by Lessor to pay for the cost of removal of the debris and . restoration of the Premises from out of Lessee's share of such remaining proceeds before any: payments are made to Lessee.

11.5 Disputes. Disputes arising under this Article with respect to the allocation of insurance

proceeds or the extent of damage to a Building or to the Project shall be determined by . . appraisal pursuant to the provisions of Article 19.

ARTICLE12

Changes and Alterations

12.1 Conditions Governing Changes and Alterations.

12.1.1 Lessee's Rights and Obligations. Lessee shall have the right at any time and from time to time during the Term of this Lease: (1) to make or perform such repairs; maintenance, replacements, renewals, additions, betterments, changes and alterations (including · any Restoration required or permitted under Article 10 or Article 11 and any Tenant Finish Improvements not included within the Work to be completed pursuant to Section 5.2), structural or otherwise, to the Buildings or other Improvements from time to time located on the Premises; (2) to construct new Buildings or other Improvements on any portions of the ~and designated in .. • the Approved Plans for the Initial Project or for any Added Component or Redevelopment Plan for future construction or as a future Building site, all as Lessee shall deem necessary or desirable in cotniection with the requirements of the Permitted Uses or as may be required or · approved by Lessor under this Lease (all of the foregoing are collecti;vely referred to herein as "Changes and Alterations" or any one of which is individually referred to herein as a "Change · or Alteration"). The foregoing right and the right to construct any Additional Component or new Project pursuant to an approved Redevelopment Plan shall, however, be subject to the following covenants and conditions that Lessee shall observe and perform (as applicable):

(a) Fee to Lessor for Reimbursable Expenses. For any change in use, any Additional Component or any Redevelopment Plan that requires a change in the existing · zoning for Parcel EC-2C, Lessee shall pay a $25,000 deposit to offset Lessor's Reimbursable Expenses associated with obtaining necessary approvals for such Added · Component or Redevelopment Plan from all Governmental Authorities having . jurisdiction; provided however, such $25,000 deposit shall not limit the amount of . Lessor's Reimbursable Expenses, which shall be paid by Lessee pursuant to Sections 3.5 · · and 12.3.2 ofthis Lease. ·

(b). Amendment of Lease. Any other change in use or the construction of ariy . additional Buildings or other hnprovements, including (1) any new Project to be constructed pursuant to an approved Redevelopment Plan, (2) any Additional Component to be constructed pursuant to the Approved Plans for such Additional Component, shall be effected only after a written amendment to this Lease is executed by Lessor and. ·

Lessee approving the same and setting forth (x) the new Base Rent payable as a result of such Added Component as required pursuant to Section 3.1.4 or Redevelopment Plan as required pursuant to Section 12.3.1, if applicable, (y) any change to the description ofth~ Project, if required, or (z) any other appropriate matter. Any Preliminary Plans and Fitial · Plans and Specifications and Preliminary Schedule for such Change or Alteration, Addeq - Component, new Project shall, after execution of any required written amendment hereto ,

or written approval, be subject to review and approval by Lessor pursuant to the review • _and approval procedures outlined in Article *5* as if they were part of a Submittal for the · Initial Project.

(c) Permits. Lessee shall not undertake or commence any work in connection.· with any Change or Alteration, any Added Component, any new Project pursuant to a. Redevelopment Plan or any Restoration, until Lessee shall have procured and paid for, so · · far as the same may be required from time to time, all permits and authorizations of all · Governmental Authorities having jurisdiction, and Lessor agrees to join in the application · for such permits or authorizations whenever such action is necessary.

(d) Additional Requirements for Major Changes. Lessee shall not undertake or commence (1) any structural Change or Alteration, (2) any Change or Alteration that· would constitute a material Change or Alteration in or to the nature, size, exterior appearance, use or character of ·any Building or Improvements or any previously , approved Final Plans and Specifications therefor, (3) any Change or Alteration that : would materially adversely affect the value of any Building, (4) any Change or Alteration . (except customary or necessary maintenance) involving, in any period of twelve (12) .. consecutive months, an aggregate estimated cost of more than forty percent (40%) of the · most recently determined Full Insurable Value of the Buildings and other Improvements;,· or (5) any Change or Alteration which consists of the constl'qction of a new Building or • · Buildings whether pursuant to a Redevelopment Plan or an Added Component, including without limitation a Building or an Added Component (any such Change or Alteration · referred to in clauses **(1)** through (5) being referred to as a **"Major Change")** without in·· any such case first obtaining the prior written approval from Lessor of (x} the Final Plans , and Specifications for such Major Change, which approval shall not be unreasonably .· withheld, except that in the case of a Change or Alteration to the exterior appearance of, the Buildings or other Improvements, Lessor's approval shall not be unreasonably· withheld or delayed so long as the Final Plans and Specifications for such Major Chang~ • are aesthetically consistent with and a logical extension of any previously approved Preliminary Plans for such Major Change (if any) and are complementary to the theri . existing design and. appearance of the Project, and are complementary to the design and . · appearance of any then existing or planned developments on neighboring parcels; and (y) the Preliminary Schedule for the Major Change, including or Added Component. Except .· as provided in the preceding sentence and in Section 12.3 below, Lessor's consent shali not be required for any Change or Alteration that Lessee or any Tenant may elect to undertake.

(e) Guaranty of Completion for Major Changes. and Restorations. Lessee shall not .undertake or commence any work in connection with any Major Change· (including any Added Component or any new Project pursuant to an approved .

Redevelopment Plan) or any Restoration unless and until Lessee shall, at Lessee's option; provide one of the foJlowing: ·

(i) Furnish to Lessor, at Lessee's sole cost and expense, a • .
surety bond or bonds, or execUted counterparts thereof, covering payment for and p_erfonnance of all labor and materials, on which Lessee (or such Tenant) shall be .
principal and a·surety company authorized to do business in the State oflllinoi$.
and approved by Lessor (which approval shall not be unreasonably withheld) .
shall be surety, such bond or bonds to be in a fonn satisfactory to Lessor and ·
conditioned upon payment by or on behalf of Lessee (or such Tenant) in full in.
accordance with any construction contract entered into for such work; or

(ii) Furnish to Lessor, at Lessee's sole cost and expense, an ·

irrevocable letter of credit in the fonn attached hereto as Exhibit E issued by a .
hank or savings and loan association reasonably satisfactory to Lessor for an amount not Jess than one hundred ten percent (110%) of the entire cost of such work (such cost to be estimated by an architect or engineer selected by Lessee or •
such Tenant and reasonably satisfactory to Lessor under whose supervision such work is to be conducted) and providing that Lessor may draw upon such letter in the event Lessee fails to complete such work in accordance with this .
Section 12.1, in which event such funds shall be deposited into an escrow created·
pursuant to clause (iv) below and disbursed as provided therein;

(iii) Provide or cause to be provided to Lessor a guarantee by a:
Person whose financial capability is satisfactory to Lessor in Lessor's sole .
. discretion substantially in the fonn of the Guaranty attached hereto as Exhibit F
covering completion of such Major Change, Added Component or new Project·
pursuant to an approved Redevelopment Plan, pursuant to the Final Plans and •
Specifications for such Major Change; or

(iv) Cause to be deposited (with Lessor, a Proceeds Trustee or a.
tide insurance company reasonably acceptable to Lessor) funds (a portion of which may be the proceeds of a loan secured by a First Leasehold Mortgage)
_equal to one hundred ten percent (110%) of the entire cost ofany such work
(such cost to be estimated by an architect or engineer selected by Lessee and.
reasonably satisfactory to Lessor under whose supervision such work is to be.
conducted,), which amount shall, in the case of any Restoration required as a.
result of a Casualty, include insurance proceeds and any deductible or self-.
insured retentions not covered by any applicable insurance proceeds so deposited.
Such deposit shall be made under an Escrow Agreement whereby Lessor, the.
Proceeds Trustee or such title insurance company shall from time to time pay out·
sums upon the written request of Lessee and conditioned upon the title insurance·
company issuing an endorsement to Lessor's owner's title insurance policy
insuring Lessor against possible mechanics' lien claims through the date of
issuance thereof, which shall be accompanied by:

(1) a certificate of the architect or engineer who supervises the work to the effect that (x) the work for which payment is requested has been completed in accordance with the Final Plans and Specifications approved (if and to the extent required) under Section 12.1.l(e)(iii); (y) payment is due and payable to the contractors~ subcontractors, mat,erial suppliers, laborers, engineers, architects or other persons, firms or: corporations rendering services or materials in connection with any such work, or that such payments will reimburse Lessee for expenditures made by Lessee in connection with any such work; and (z) the remaining funds so deposited will be sufficient upon the completion of such work to pay for the same in full;

(2) sworn Lessee's and general contractor's statements setting forth all contractors, subcontractors, material suppliers and. others with whom each has contracted, the amounts of the contracts, the amounts paid to date, and showing the balance due; and

(3) an official search or other evidence reasonably satisfactory to Lessor that there has not been filed with respect to the Premises, the Buildings or the other Improvements any mechanics' or other lien that has not been discharged of record, in respect of any work, labor, services or materials performed, furnished or supplied, or claimed to have been.

performed, furnished or supplied, in connection with any such work.

L~ssor, the Proceeds Trustee or the title insurance company, as the case may be~.· · shall not be required to pay any amounts out of the sums held pursuant to the Escrow Agreement at any time when the Premises, the Buildings, the other. Improvements or Lessor's Estate shall be encumbered with any such lien n()t bonded or otherwise secured to the reasonable satisfaction of Lessor. Upon submission of proof satisfactory to Lessor that such work has been paid for and completed, the balance of the funds then held pursuant to the Escrow Agreement identified above shall, except as otherwise provided in Section 13.3, be paid to Lessee. ·

(f) Preservation of Value. Except as otherwise permitted pursuant to Article 10 or the Approved Plans for an Added Component or the approved Redevelopment Plan, all work when completed shall be of such a character so as not to reduce, or otherwise materially adversely affect, the value of the Premises and the Project or any part thereof, nor to reduce the cubic content, useable area or character of any of the Buildings. ·

(g) Standards for Work. All work shall be completed promptly and in a good and workmanlike manner and shall be conducted at all times in compliance with (1) all

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Life Safety Code 101
as from time to time
in effect (or any
replacements thereof

or substitutions
therefor).

(h)

Lien Free Completion. The cost of any such work, including with~ut limitation, any work required under any IDOT permits or Village Requirements to construct any modifications or enhancements to the intersections and drives providing access to the Premises from Founders Drive or any enhancements to the existing Public Improvements required by the Village as part of its approvals of such work, required as a: result of any changes in the Project requested by Lessee or required as a result . of Lessee's Preliminary Plans or Final Plans and Specifications for the Project (whether by reason of any Changes or Alterations, any Added Component or any Redevelopment Plan proposed by Lessee) shall be constructed and paid for reasonably promptly so that the. Premises and the Buildings and other Improvements, including Lessor's Estate therein, shall at all times be free of liens for labor and materials supplied or claimed to have been· supplied to the Premises and Lessee shall comply (or shall cause any Tenant performing any such work to comply) with the provisions of Article 8.

(i) Schedule. Once commenced, any such work shall be prosecuted to . completion on a reasonable schedule (taking into account market and other relevant conditions or the applicable Approved Schedule, if any, subject to Unavoidable Delays.

(j) Lessee's and Lessee's Contractor's Insurance. Lessee (or any Tenant performing such work) shall comply with the requirements of Sections 7.1, 7.2, and 7.3 to the extent the same are applicable to the work, and Lessee (or such Tenant) shall cause. all contractors and subcontractors performing any portion of the work to maintain · insurance meeting the requirements of Section 7.6 and otherwise comply with the • provisi?ns of Section 7.6 at all times during their performance of any work. · ·

12.1.2 Excavation. If Lessee receives notice that any excavation or other • building operation is about to be made or shall be made upon any adjoining property, street or · alley, Lessee shall, at its sole cost and expense (but subject to any legal rights of Lessee to seek · and obtain reimbursement from the adjoining property owner for such costs and expenses), to the extent required by applicable law, shore or cause to be shored the foundations and walls of the Buildings and other Improvements not properly performed by the adjoining property lessee or owner and do aJI other acts or things necessary for the safety and preservation of the Premise$ and the Project. Except to the extent required by law, Lessor shall not be liable for any inconvenience, annoyance, disturbance, cost, Joss of business or other damage arising from ariy • such excavation ·or building operation on any adjoining property and Lessee's obligations . · hereunder shall not thereby be affected. In addition, if any excavation or other building · operation is about to be made or is made upon the Premises, Lessee shall, at its sole cost and · expense, assume all obligations imposed by law on the owner and occupant of the Premises, or · either thereof, to protect such adjoining property and buildings and structures thereon from damage, and shall do all acts and things necessary for the safety or preservation of the adjoining . · property and the buildings and structures thereon and to prevent any claims or liens against · Lessor or Lessor's Estate. ·

12.2 Changes and Alterations Constitute a Part of the Premises. At all times during the course of any work in connection with (i) any Added Component constructed as permitted pursuant to the Approved Plans therefor, (ii) any Changes and Alterations that are made or installed by Lessee in or on the Premises, or (iii) any Redevelopment Plan approved by Lessor •
pursuant to Section 12.3, such work shall immediately be and become a part of the Premises but shall remain the property of Lessee (subject to the terms of this Lease or such Tenant's Tenant .· Lease)~

except for any such Improvements that constitute Public Improvements or Off-Site. Improvements owned by any Governmental Authority (including IDOT or the Village) or except as or until such time as is otherwise provided in this Lease. Notwithstanding the foregoing, upon . the Termination Date or the Expiration Date, whichever first occurs~ title to the entire Project,· · including all Changes and Alterations, any new Buildings or other Improvements, including any . constructed pursuant to the Approved Plans for any Major Change (including an Added · · Component) or approved Redevelopment Plan, but excluding any Public Improvements or Off..; • Site Improvements conveyed to a Governmental Authority, shall vest in Lessor without any act on the part of or the recording of any instrument by Lessor or Lessee.

12.3 Redevelopment of the Premises.

12.3 .1 Redevelopment Plan and Submittals. At any time after completion of construction of the Initial Project, or under the circumstances described in Sections 10.1 or 10.2 or Article 11 where a partial taking pursuant to a Condemnation Proceeding or Casualty · involving the Project or Premises has occurred, Lessee may, in its sole discretion, elect to submit . a written request to Lessor for approval of a plan for redevelopment of the Premises ("Redevelopment Plan") involving either the construction of new Buildings and Improvements .

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or a Major Change to the existing Buildings and Improvements. Such request for approval shall be treated as a Major Change as provided in Section 12.1.1 and shall be accompanied by (i) such . preliminary schematic site plans, architectural renderings and elevations, drawings, proposeq · zoning variations, special uses or other zoning requests that may be required in connection with .. the Redevelopment Pian, (ii) a Preliminary Schedule for the development and construction of the · Project proposed as part of the Redevelopment Plan, (iii) a proposed form of an amendment to · this Lease, which amendment shall be negotiated, finalized and entered into by ·Lessor and : Lessee as promptly as practicable following Lessor's approval or conditional approval of the. Redevelopment Plan and as a condition to Lessee's commencement of any work in connection· with the Redevelopment Plan, and {iv) such other documentation and information as Lessee : deems necessary, including without limitation, information on any additional or modifications to • any Off-Site Improvements that will be required io accommodate such Redevelopment Plan, to enable Lessor to.evaluate Lessee's proposal and to determine whether the Base Rent is to be modified as required pursuant to Section 3 .1.4 on account of an increase in the size of the Project • proposed in such Redevelopment Plan (all such documents and other information being collectively referred to herein as a "Redevelopment Submittal"). No Redevelopment Submittal shall be deemed to have been submitted to the Society of the Divine Word or Lessor's · Committees for approval unless such Redevelopment Submittal is accompanied by a written . request for approval and a proposed form of an amendment to this Lease, which amendment . shall be negotiated, finalized and entered into by Lessor and Lessee as promptly as practicable .. following Lessor's approval or conditional approval of the Redevelopment Plan and as a.·. condition to Lessee's commencement of any work in connection with the Redevelopment Plan.

All other drafts or proposed Redevelopment Plans delivered to Lessor's Committees, attorneys or agents, shall be deemed delivered for purposes of comment and preliminary review only.

12.3.2 Informal Cooperation. Review and Comment. Prior to submitting·· a· Redevelopment Submittal, Lessor shall cooperate with Lessee in good faith in Lessee's

creation. and development of any Redevelopment Submittal by permitting Lessee to present to Lessor (or to Lessor's consultants designated from time to time) any informal, preliminary submittals or ..
elements of any proposed Redevelopment Submittal prior to the date on which a Redevelopment : · Submittal is made formally to Lessor in accordance with Section 12.3.1 above. Lessor shall, to· the extent within Lessor's reasonable control, endeavor to direct its consultants to review any • such preliminary submittals and to provide comments, advice, informal suggestions and . criticisms, upon request, with the intent that through such process, Lessee's Redevelopment. Submittal, when presented to Lessor, shall have had the benefit of input and advice of such of· Lessor's consultants as have previously reviewed and commented on any such preliminary.· submittals. No elements of any preliminary submittals shall be submitted to the Village or to any other Governmental Authority without the prior written approval of Lessor and no comments; advice, approval or suggestions with respect to any preliminary submittal by any of Lessor's · consultants shall be binding on Lessor. Lessee shall, upon demand, reimburse Lessor for all Reimbursable Expenses incurred by Lessor in connection with Lessor's review of any Redevelopment Submittal, preliminary submittals related thereto or participation in any · proceedings or applications that may be required by any Governmental Authority in connection · with the Redevelopment Plan.

12.3.3 Time Periods for Lessor's Review, Comment and Approval. Lessor shtlll have ninety (90) Days after receipt of the Redevelopment Submittal within which to either approve, disapP.rove or conditionally approve the Redevelopment Plan. Lessor may disapprove Lessee's Redevelopment Submittal or Redevelopment Plan for any reason (whether or not · arbitrary) or for no reason whatsoever. The manner in which and procedure for Lessor's notices. of approval, conditional approval or disapproval of any proposed Redevelopment Plan shall be governed by the applicable provisions of Section 5.1.5. If Lessor fails to provide Lessee with notice of approval or disapproval within said 90-Day period, such failure shall be deemed to be a,··. disapproval of the Redevelopment Plan. If Lessor disapproves of the Redevelopment Plan, . Lessor, simultaneously with its notice of disapproval, may elect to terminate this Lease effective ninety (90) Days from the date of such notice of disapproval of the Redevelopment Plan; . provided, however, that Lessee may elect, within thirty (30) Days following receipt of Lessor's notice of disapproval, to withdraw its Redevelopment Plan, in which event this Lease shall continue in full force and effect as if no Redevelopment Plan had been submitted by Lessee.

12.3.4 Conditional Approvals. In the event Lessor approves or conditionally · approves any such Redevelopment Plan, then prior to commencing any construction work contemplated by such Redevelopment Plan, Lessee shall submit Final Plans and Specifications io · Lessor for approval, which approval shall not be unreasonably withheld or delayed provided the • Final Plans and Specifications are, in Lessor's reasonable judgment, consistent with and a logical exten~ion of the previously approved Redevelopment Submittal or Redevelopment Plan in all · material respects. In constructing any new Buildings or other Improvements, Lessee shall at all times comply with the terms and provisions of this Lease including, without limitation, the. conditions set forth in Section 5.2, as if in said provisions all references to "Buildings" and

"Improvements". or "Initial Project" instead referred to the new Buildings and other Improvements that are to be constructed pursuant to the Redevelopment Plan. In addition, as a · condition to the final approval of any Redevelopment Plan proposed by Lessee during the last . ten (10) years of the Initial Term or the first Renewal Term, Lessee shall exercise its option to: renew this Lease under Section I .I. However if Lessee shall not be in a position to so renew this .
Lease under Section 1.1 (i.e. because Lessee is then in Default under this Lease), then Lessor may

withhold its consent to the Redevelopment Plan until such time as Lessee has cured all • . Defaults. ·

12.4 Inspections or Approvals by Lessor. For the purposes of assuring Lessee's ·compliance with the provisions of Article 5 and this Article 12, as all of the other terms, conditions, covenants, agreements and obligations of Lessee under this Lease, Lessor, Lessor's Beneficiary or any architect, engineer or other representative whom Lessor may select to act for it shall be permitted upon reasonable notice to Lessee (except no notice shall be required in an emergency), but shall have no obligation, at Lessor's sole cost and expense, to inspect the Work.
or any work associated. with any Added Component, any Major Change or any Redevelopment • Plan at any reasonable time upon reasonable notice to Lessee both during the course of construction of all work (including the Work in connection with the Initial Project) and upor). completion thereof. However, no inspection made by any architect, engineer or other representative of Lessor or Lessor' Beneficiary, and no inspection or approval by any such architect, engineer or other representative of any designs, plans, drawings, specifications or • contracts (including, without limitation, any Preliminary Plans, Final Plans and Specifications or Redevelopment Plan or any portions thereof) for or with respect to any work contemplated pursuant to this Lease (including the Work in connection with the Initial Project) or the method• of performing any work or any materials or labor to be supplied in connection therewith by Lessee, its employees, agents, contractors or subcontractors shall be deemed or construed in any way as relieving Lessee from or modifying Lessee's obligation Jo complete such work in accordance with the applicable requirements set forth in this Article 12 or in Article 5, and. Lessor shall not thereby or otherwise be deemed or construed in any way to have assumed any responsibility or liability for any work (including the Work in connection with the Initial Project) or the safety, adequacy, sufficiency, legality or otherwise of such work or the manner in which such work is conducted or completed. All such responsibility and liability shall be and remain that of Lessee, and Lessor shall have no right to direct or control such work.

12.5 Application to Work. Except as otherwise specifically provided in Section 5.3.i.: the provisions of this Article 12 shall not apply to the Work.

12.6 Disputes. Disputes arising under Section 12.I.l(d) as to whether a proposed Change or Alteration is a Major Change shall be subject to the negotiation and mediation provisions of Section 18.1, followed by a determination by arbitration pursuant to Article 18. · Disputes arising under Section 12.1.1(d) as to the Full Insurable Value ofthe Buildings and other Improvements or the estimated cost of any work shall be determined by appraisal pursuant to Article 19. ·

ARTICLE 13

Deposited Funds; Interest

13.1 Interest on Deposited Funds. Funds deposited by Lessee with Lessor under any , · provision of this Lease shall be invested, as Lessor may direct, in either United States : government securities or federally insured money

market funds or certificates of deposit. At the · time of the repayment or application of such funds, any interest paid on such deposit or earned · on such investment shall be paid to Lessee or applied by Lessor if and to the extent necessary to · satisfy Lessee's obligations under this Lease.

13.2 Funds Held in Trust. Whenever anyfunds are to be paid to or deposited with Lessor, a Proceeds Trustee or a title insurance company pursuant to Articles 4, ~. 1, ~ 10, 11 or· 12, such funds shall be held by Lessor, the Proceeds Trustee or the title insurance company, as·. the case may be, in accordance with the applicable Article under this Lease. The fees and . expenses of the Proceeds Trustee or title insurance company shall be paid by Lessee or deducted· from the sums held by such Proceeds Trustee or title insurance company.

13.3 Defaults. Funds in the hands of Lessor, a Proceeds Trustee or a title insurance company at the time a Default occurs, even if such funds would otherwise be payable to Lessee under Articles 4, ~ L ~. 10, 11 or 12, shall continue to be retained by Lessor, the Proceeds Trustee or the title insurance company, as the case may be, and shall not be paid to Lessee until all Defaults have been cured. If the Termination Date shall occur prior to Lessee's cure of each and every such Default, Lessor shall be entitled to apply or demand that the Proceeds Trustee or title insurance company, as the case may be, apply such funds to cure any uncured Defaults for. which the applicable notice and cure period has expired without cure, and to compensate Lessor for any loss, cost, damage or expense (including reasonable attorneys' fees) it sustains as a result of any such uncured Defaults, with the balance of such funds, if any, to be paid to Lessee a5 required pursuant to this Lease. All funds so applied or permitted to be applied by Lessor, the Proceeds Trustee or the title insurance company, as the case may be, shall become the absolute property of and shall be paid to Lessor upon demand and, in the case of the Proceeds Trustee or the title insurance company, such Proceeds Trustee or title insurance company shall thereupon be relieved of any further responsibi)ity or liability therefor. ·

ARTICLE 14

Indemnification by Lessor and Lessee

14.1 Indemnification.

14.1.1 By Lessee: To the full extent not prohibited by applicable law and except as otherwise provided in this Lease, Lessee shall protect, indemnify, save harmless and defend Lessor, Lessor's Beneficiary and their respective Protected Persons, from and against any and all Claims imposed upon, asserted against or incurred by Lessor, Lessor's Beneficiary or any of their respective Protected Persons arising from or in any way related to (i) the conduct, · management or occupancy of, or from the Work or any other work or thing whatsoever done in and on, the Premises, the Buildings and any other Improvements or any part thereof, during the

Term of this Lease; (ii) any condition of the· Premises, the Buildings and any other Improvements, or any part thereof during the Term of this Lease; (iii) any breach or default on the part of Lessee in the performance of any term, covenant, condition, obligation or agreement on the part of Lessee to be performed or met under this Lease; (iv) any act or negligence of Lessee or any Tenant, or any of Lessee's or any Tenanfs respective agents, contractors, servants~ employees, or licensees; (v) any accident, injury or damage whatsoever caused to any Person occurring during the Term of this

Lease, in or on the Premises, the Buildings or any other ·
Improvements, or any part thereof; (vi) the generation, presence, disposal, release or threatened . release of any Hazardous Substances on over, under, from or affecting the Premises or the Project caused or permitted by Lessee or any Tenant, or any of Lessee's or any Tenant's · respective agents, contractors, servants, employees or licensees, or anyone acting by through or . under any of them; (vii) any personal injury (including wrongful death) or property damage {real • · or personal) arising out of or relating to any such generation, presence, disposal, release or . threatened release of any Hazardous Substances; or (viii) any violations of or failure to comply with any Environmental Laws with respect to the operation of the Premises or construction, ownership or operation of the Project (excluding any Pre-Existing Conditions).

14.1.2 By Lessor. To the full extent not prohibited by applicable law and except as otherwise provided in this Lease, Lessor shall protect, indemnify, save harmless and defend Lessee and Lessee's Protected Persons from and against any and all Claims imposed upon, asserted against or incurred by Lessee or Lessee's Protected Persons arising from or in any way related to (i) any inaccuracies in the representations and warranties made by Lessor in Article 26;. or (ii) any damage caused by the negligence or more culpable conduct of Lessor, Lessor's: Beneficiary or either of their respective agents, contractors, servants, employees or licensees, • or

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anyone acting by through or under any of them (other than Lessee, any Tenant or any of Lessee's or any Tenant's respective agents, contractors, servants, employees or licensees, or anyone acting by through or under any of them) during any inspection of the Premises pursuant to Section 16.1, or during any access pursuant to Section 16.2; or (iii) any damag~ caused by work done by Lessor in connection with the installation or maintenance of the bike path, tree planting or the installation of street lights, if any, set forth in Section 5.4. · ·

14.1.3 Limitations on Indemnification. The indemnification provtstons . of Section 14.1.2 shall not be limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Lessee or any contractor or subcontractor of Lessee under any workers' or workmen's compensation acts, disability benefit acts or other employee benefit acts. In no event shall the indemnifications contained in Sections 14.1.1 or 14.1.2 extend to any Claims arising solely out ofthe negligent or willful acts or omissions of the Person or Protected Person seeking indemnification.

14.2 Notice of Claim or Potential Claim. Lessor or Lessee, as the case may be, shall notify the Indemnitor (such notification is herein called a "Notice of Claim" or "Notice of Potential Claim," as the case may be) of any Claim or of any occurrence or event which could give rise to a Claim ("Potential Claim") for which Lessor or Lessee or one of their respective Protected Persons is (or believes it is) entitled to be indemnified or defended under this Lease promptly after Lessor or Lessee obtains actual knowledge of any Claim or Potential Claim, or promptly upon receiving notice from or on behalf of the Indemnitee against or by whom sudh ·
Claim or Potential Claim has been or may be imposed, asserted or incurred, as the case may be.